State of California – Natural Resources Agency
DEPARTMENT OF FISH AND WILDLIFE
Land and Facilities Engineering Branch
1010 Riverside Parkway
West Sacramento, CA 95605
Engineering@wildlife.ca.gov

GAVIN NEWSOM, Governor
CHARLTON H. BONHAM, Director

INVITATION FOR BID
Notice to Prospective Bidders

January 6, 2026

You are invited to review and respond to this Invitation for Bid (IFB) P2599006, entitled "Green Island Unit - Demolition," Napa-Sonoma Marshes Wildlife Area – Green Island Unit, Napa County, California. In submitting your bid, you must comply with these instructions.

Terms and Conditions

All agreements entered into with the State of California will include the following terms and conditions:

- Exhibit C - General Terms and Conditions (GTC 04/2017)
- Contractor Certification Clauses (CCC 04/2017)
- Standard California Nondiscrimination Construction Contract Specifications

Public Works Requirements

1. No Contractor or subcontractor may be listed on a bid proposal for a public works project unless registered with the Department of Industrial Relations for contracts greater than $25,000.00.

2. No Contractor or subcontractor may be awarded a contract for public work on a public works project unless registered with the Department of Industrial Relations for contracts greater than $25,000.00.

3. This project is subject to compliance monitoring and enforcement by the Department of Industrial Relations for contracts greater than $25,000.00.

Prevailing Wages

In addition to the terms and conditions referenced above, the Contractor will comply with all laws, regulations, and policies regarding prevailing wage determinations. These rules include, but are not limited to:

Labor Code §1770: The Department of Industrial Relations (DIR) has ascertained general prevailing rate of per diem wages in the locality in which the work is to be performed.

Labor Code §1774: The Contractor to whom the contract is awarded, and any subcontractor under him, shall pay not less than the specified prevailing rates of wages to all workmen employed in the execution of the contract.

Current prevailing wage rate information is available through the Department of Industrial Relations (DIR) website at: http://www.dir.ca.gov/OPRL/statistics_and_databases.html.

***Note**: When the wage determination shows an expiration date (noted by a double asterisk**), to expire during the term of the contract, the Contractor must call or write the DIR to obtain the new rates and incorporate them in the bid to be applicable for the term of the contract (Department of General Services General Conditions of the Contract for Construction, Section 3.3.3.3, October 2011).*

If you do not have Internet access, a hard copy can be provided by contacting CDFW engineering listed below.

In the opinion of CDFW, this Invitation for Bid is complete and without need of explanation; however, if you have any questions, please contact:

Land and Facilities Engineering Branch
California Department of Fish and Wildlife
1010 Riverside Parkway
West Sacramento, CA 95605

Please note that no *verbal* information given will be binding upon the State unless such information is issued in writing as an official addendum.

CAL eprocure: This IFB along with any applicable addenda will be published on line at https://caleprocure.ca.gov/pages/Events-BS3/event-search.aspx. On "Search Events, under Department, enter "3600" and click Search. Select the project number (P2599006) in the Events Field.

Sincerely,

Benson, Rob@Wildlife

Digitally signed by Benson, Rob@Wildlife
DN: DC=Gov, DC=Ca, DC=Dfg, DC=AD, OU=DFG Divisions, OU=ECD, OU=Users, CN="Benson, Rob@Wildlife"
Reason: I am the author of this document
Location:
Date: 2026.01.04 08:50:13-08'00'
Foxit PDF Editor Version: 13.1.6

Robert Benson, Senior Civil Engineer (RA)
Wildlife and Fisheries Division
Land and Facilities Engineering Branch

STATE OF CALIFORNIA
THE NATURAL RESOURCES AGENCY
CALIFORNIA DEPARTMENT OF FISH AND WILDLIFE
1010 RIVERSIDE PARKWAY
WEST SACRAMENTO, CALIFORNIA 95605
WILDLIFE AND FISHERIES DIVISION
FACILITIES ENGINEERING

CONTRACT DOCUMENTS AND SPECIFICATIONS

FOR

INVITATION FOR BID - P2599006

GREEN ISLAND UNIT DEMOLITION

AT

NAPA-SONOMA MARSHES WILDLIFE AREA – GREEN ISLAND UNIT

NAPA COUNTY, CALIFORNIA

GAVIN NEWSOM, GOVERNOR
WADE CROWFOOT, SECRETARY FOR NATURAL RESOURCES AGENCY
CHARLTON H. BONHAM, DIRECTOR, CALIFORNIA DEPARTMENT OF FISH AND WILDLIFE

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E. Sample Standard Agreement

1. STD 213 (Sample) ..... 2 pages
2. Exhibit A; Scope of Work (Sample) ..... 1 page
3. Exhibit B; Budget Detail and Payment Provisions (Sample) ..... 4 pages
4. Exhibit A1; Scope of Work Continued ..... 15 pages
5. Exhibit C; General Terms and Conditions (GTC 02/2025) ..... *
6. Exhibit G; Additional Provisions (Public Works) ..... 20 pages
7. Attachment 1 - Demolition Level Asbestos and Lead Survey Report ..... 122 pages
8. Attachment 2 - Limited Asbestos in Surface Soils Survey ..... 19 pages
9. Attachment 3 - Lead Related Construction Soils Sampling ..... 37 pages
10. Standard California Nondiscrimination Construction Contract Specifications (STD 18) ..... **
11. Drawing; W02-2025-001 ..... 2 sheets

* https://www.dgs.ca.gov/OLS/Resources/Page-Content/Office-of-Legal-Services-Resources-List-Folder/Standard-Contract-Language for GTC 04/2017

** http://www.documents.dgs.ca.gov/dgs/fmc/pdf/std018.pdf for STD 18

F. Attachments; Required Bid Documents for Bidding Purposes

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Attachment 1	Required Attachment Check List	1
Attachment 2	Bid/Bidder Certification Sheet **(Signed)**	2-3
	Instructions**	4
Attachment 3	Bid Form (Cost Sheet)	5
Attachment 4	List of Proposed Subcontractors	6
Attachment 5	Bidder's Prevailing Wage Requirement	7
Attachment 6	Payee Data Record (STD 204) **(Signed)**	8
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Attachment 11	Surface Mining & Reclamation Act Certification Form **(Signed)**	17
Attachment 12	Small Business Subcontractor Participation Worksheet	18
Attachment 13	Bidder Declaration Form GSPD-05-106	19-21
	The Bidder Declaration Form (GSPD-05-106) must be completed by the Prime Contractor. This form is used to document all DVBE Sub-contractors, vendors, and suppliers that are performing part of the work. DVBE must be listed on the GSPD-05-106.	
Attachment 14	DVBE Declaration Use Form (STD 843) **(Signed)**	22
Attachment 15	Bidder's Bond **(Signed & Notarized)**	23
Attachment 16	California Civil Rights Laws Attachment **(Signed)** (Bids over $ 90,000.00)	24

A. Description of Services

1. Description:

   Contractor shall furnish all labor, equipment, tools, parts, materials, supplies, permits, and incidentals necessary to provide demolition services, abate and remove all hazardous materials, and provide environmental plans as required.

2. Location of Services:

   The location of services shall be performed at Napa/Sonoma Marshes Wildlife Area - Green Island Unit, 2650 Green Island Road, American Canyon, CA. 94503, Napa County.

3. Contract Term Date: Upon DGS approval until August 28, 2026

4. Time of Completion:

   Construction shall be completed within ***SIXTY (60) WORKING DAYS*** following the official "Notice of Start Date" from the State to the Contractor to commence construction.

   Additional contract time will be allowed for delay caused by shortage of materials, provided the Contractor advises Engineer ***IN WRITING*** within fifteen (15) days from the beginning of such delay and provided the Contractor has made diligent effort to get supplies from known sources.

5. License Required:

   A – General Engineering Contractor, or
   B – General Building Contractor

   With the following requirements:

   C22 License:

   If the Bidding Contractor does not possess the required license, then the Bidding Contractor shall subcontract with a contractor having the said license.

   Lead Abatement:

   Lead-Related Certificate (LRC) from the Department of Public Health, Childhood Poisoning Prevention Branch. If the Bidding Contractor does not possess the required certificate, then the Bidding Contractor shall subcontract with a contractor with said Certification.

   The subcontractor may not sublet the work to another contractor. The subcontractor must be listed on the list of Proposed Subcontractors, Attachment 4, page 6, and Attachment 13 GSPD-05-106, page 20, regardless of the amount of work.

   All employees working on asbestos and/or lead abatement **MUST** have a current, valid Certificate.

B. Estimated Cost: $650,000.00

C. Bid Requirements and Information

1. Key Action Dates

Event	Date
IFB available to prospective bidders	**January 6, 2026**
Pre-bid Walkthrough **(Mandatory)**	**February 10, 2026 @ 11:00 AM (Mandatory)**
Bid Opening	**February 26, 2026 @ 2:00 PM**
Bid Due Date	**February 26, 2026 @ 2:00 PM**
Notice of Intent to Award	**March 2, 2026**
Proposed Award Date [See C) 9) f), Page 8]	**May 2026**
Proposed Start of Construction Date	**May 2026**

2. Contacts, Pre-Bid Conference & Reasonable Accommodation

a. For Engineering related questions or other general questions pertaining to the bidding requirements, please contact Robert Benson at 916-996-7593 or Email; Rob.Benson@wildlife.ca.gov.

b. A **Mandatory** pre-bid walkthrough is scheduled at the jobsite as indicated above for the purpose of discussing concerns regarding this IFB. **Contractor is required to attend the mandatory pre-bid walkthrough. Meet at the Green Island Unit parking lot. See Drawing Set, Sheet 1 for location of site.**

c. For contractors who need assistance due to physical impairment, a reasonable accommodation will be provided by the awarding agency upon request for the pre-bid conference/walkthrough. The contractor must call Engineering at 916-376-8648 no later than the fifth (5th) working day prior to the scheduled date and time of the pre-bid conference to arrange for reasonable accommodation.

3. Submission of Bids

a. All bids must be submitted under **sealed** cover and sent to California Department of Fish and Wildlife (CDFW.) The bid must be **received** by the date and time shown in Section C, Bid Requirements and Information, Item 1, Key Action Dates, (page 3). The sealed cover must be plainly marked with the IFB number and title, must show your firm name and address, and must be marked with "DO NOT OPEN", as shown in the following example:

(IFB Number)
(IFB Name)
(Agency Name and Address)
DO NOT OPEN

Bids not submitted under sealed cover may be rejected.

All bids shall include the documents identified in Section F; Required Bid Documents for Bidding Purposes. Bids not including the proper “required attachments" shall be deemed non-responsive. A non-responsive bid is one that does not meet the basic bid requirements.

b. All documents requiring a signature must bear an original signature of a person authorized to bind the bidding firm.

c. Mail, or hand delivered, or overnight express all bids to the following address:

CDFW – Land and Facilities Engineering
Attn: Nikkia Capizzano, AGPA
1010 Riverside Parkway
West Sacramento, CA 95605

d. Bids must be submitted for the performance of all the services described herein. Any deviation from the work special provisions will not be considered and will cause a bid to be rejected.

e. A bid may be rejected if it is conditional or incomplete, or if it contains any alterations of form or other irregularities of any kind. The State may reject any or all bids and may waive an immaterial deviation in a bid. The State's waiver of an immaterial deviation shall in no way modify the IFB document or excuse the bidder from full compliance with all requirements if awarded the agreement.

f. Costs incurred for developing bids and in anticipation of award of the agreement are entirely the responsibility of the bidder and shall not be charged to the State of California.

g. Bid prices/rates shall include the cost of employer payments to or on behalf of employees, subsistence, travel, compensation insurance premiums, unemployment contributions, social security taxes, and any other taxes or assessments, **including but not limited to, sales and use taxes** required by law or otherwise and no additional allowance will be paid unless separate payment provisions in the Agreement should specifically provide otherwise.

h. Bid prices/rates shall also include the cost for obtaining payment and performance bond premiums based on the Total Bid Amount + Contingency (maximum 10%.)

i. An individual who is authorized to bind the bidder contractually shall sign the Bid/Bidder Certification Sheet, page 2. The signature should indicate the title or position that the individual holds in the firm. An unsigned bid may be rejected.

j. A bidder may modify a bid after its submission by withdrawing its original bid and resubmitting a new bid prior to the bid submission deadline. Bidder modifications offered in any other manner, oral or written, will not be considered.

k. A bidder may withdraw its bid by submitting a written withdrawal request to the State, signed by the bidder or an authorized agent. A bidder may thereafter submit a new bid prior to the bid submission deadline. Bids may not be withdrawn without cause subsequent to bid submission deadline.

l. The awarding agency may modify the IFB prior to the date fixed for submission of bids by the issuance of an addendum to all parties who received a bid package.

m. The awarding agency reserves the right to reject all bids. The agency is not required to award an agreement.

n. Before submitting a response to this solicitation, bidders should review, correct all errors and confirm compliance with the IFB requirements.

o. **Bidder shall carefully examine and thoroughly acquaint himself/herself with the conditions at the site of the work, the plans, and the provisions contained in the project special provisions.** He/she shall investigate conditions character, quality and quantity of surface, and sub-surface materials of obstacles to be encountered. Failure by the bidder to acquaint himself/herself with site conditions and available information will not relieve him/her from the responsibility for estimating properly the difficulty or cost of successfully performing the work. No additions or increases to the agreement amount will be made due to a lack of careful examination of work sites and special provisions. **The submission of a bid will be considered as conclusive evidence that the bidder has made such examination.**

p. The State does not accept alternate contract language from a prospective contractor. A bid with such language will be considered a counter proposal and will be rejected. The State's General Terms and Conditions (GTC) are not negotiable.

q. No oral understanding or agreement shall be binding on either party.

4. Evaluation and Selection

a. At the time of bid opening, each bid will be checked for the presence or absence of required information in conformance with the submission requirements of this IFB.

b. The State will evaluate each bid to determine its responsiveness to the published requirements.

c. Bids that contain false or misleading statements, or which provide references, which do not support an attribute or condition claimed by the bidder, may be rejected.

d. Award if made will be to the lowest responsive responsible bidder.

5. Award and Notification

a. Whenever an agreement is awarded under a procedure which provides for competitive bidding, but the agreement is not to be awarded to the low bidder, <u>the low bidder shall be notified by telegram, electronic facsimile transmission, overnight courier, or personal delivery five (5) working days prior to the award of the agreement.</u>

6. Disposition of Bids

a. Upon bid opening, all documents submitted in response to this IFB will become the property of the State of California and will be regarded as public records under the California Public Records Act (Government Code Section 6250 et seq.) and subject to review by the public.

b. Bid packages may be returned only at the bidder's expense, unless such expense is waived by the awarding agency.

7. Sample Standard Agreement Execution

a. This IFB includes, as a separate document, a Sample Standard Agreement (Sample Standard Agreement STD 213) for review. The Sample Standard Agreement contains language that CDFW expects to utilize for this contract.

8. Agreement Execution and Performance

a. Performance shall start not later than the express date set by the CDFW Project Engineer and the Contractor, after all approvals have been obtained and the agreement is fully executed. Should the Contractor fail to commence work at the agreed upon time, the awarding agency, upon five (5) days written notice to the Contractor, reserves the right to terminate the agreement. In addition, the Contractor shall be liable to the State for the difference between Contractor's bid price and the actual cost of performing work by the second lowest bidder or by another contractor.

b. All performance under the agreement shall be completed on or before the termination date of the agreement.

9. Contract

a. **Bids shall remain valid for 120 calendar days after the bid opening date:** The State will endeavor to execute a contract within 120 calendar days from the bid opening date. The contract is not executed until the appropriate State agency has approved the contract. Bidders shall hold their bids for 120 calendar days after the bid opening date. **Upon expiration of 120 calendar days from the bid opening date, bidders may withdraw their bids. If bidder, after expiration of 120 calendar days from the bid opening date fails to withdraw its bid and a contract is subsequently approved by the appropriate State agency and executed, bidder shall have no claim for any reason to amend its bid.**

b. If contract is awarded, the successful responsible low bidder will be required to execute and deliver to the State the required documents.

c. The apparent low bidder shall execute the required number of copies of the contract documents, (Payment and Performance Bonds, General and Automobile Liability Insurance, Workers Compensation and Employers' Liability Insurance, and STD 213) and return them within twenty (20) working days after he/she has received notice that he/she is the apparent successful low bidder. Signature of the apparent successful low bidder on the contract documents will complete identification of these documents.

d. Failure to provide the required executed contract documents within the twenty (20) working days may be deemed refusal of an award which may be cause for forfeiture of bidder's security.

e. The State may award to the next lowest responsible bidder and avail itself of all legal remedies provided by statue.

f. Proposed Award Date identified in C) 1) Key Dates is based on accurate contract documents being returned within the set time as described in c) above. Documents not having the correct language or delays in receiving documents from the Contractor will delay the Proposed Award and Start of Construction Dates.

g. The contract shall be binding upon the State only after approval by the State. Should work begin in advance of receiving notice that the Contract is approved, that work shall be considered as having been done by a volunteer and Contractor shall go unpaid.

h. Contractor and subcontractor(s), regardless of tier must furnish electronic certified payroll records directly to the Labor Commissioner (aka Division of Labor Standards Enforcement).

10. Instructions to Bidders

a. BIDS AND BIDDERS

1. The California Department of Fish and Wildlife (CDFW), reserves the right to reject any or all bids and waive any informality in any bid.

2. To receive consideration, bids shall be made in accordance with the following instructions:

Before submitting bids, all bidders must be licensed in the appropriate classification in accordance with provisions in Division 3, Chapter 9, of the "California Business and Professions Code" as amended.

No bidder may bid on work of a kind for which he/she is not properly licensed by the Contractors State License Board, and any such bid received will be rejected. Joint venture bidders must posses a joint venture license.

No contractor or subcontractor may be listed on a bid proposal for public works project unless registered with the Department of Industrial Relations pursuant to Labor Code section 1725.5 [with limited exceptions from this requirement for bid purposes only under Labor Code section 1771.1(a)]

No contractor or subcontractor may be awarded a contract for public works on a public works project unless registered with the Department of Industrial Relations pursuant to Labor Code section 1725.5

This project is subject to compliance monitoring and enforcement by the Department of Industrial Relations.

State shall not award a contract to a bidder, nor shall a bidder be eligible to bid for or receive a contract, who has, in the preceding five years, has been convicted of violating a state or federal law respecting the employment of undocumented aliens.

Bids ***MUST*** be made on the forms supplied by the California Department of Fish and Wildlife and shall be properly executed in ink with all items filled out; numbers stated in figures; the completed forms shall be without interlineations, alterations, erasures, or alternatives. ***Alternate Bid Forms will not be considered and will be cause for rejection of such bids.***

To be accepted, bids must have an original signature in ink by the bidder or an officer of the bidder who has authority to sign contracts binding upon the bidder. Unsigned bids will be considered non-responsive and will be rejected. Signature stamps are ***NOT*** acceptable.

The bidder is cautioned to check all figures and further understands that the State will not be responsible for any errors or omissions on the part of the bidder in making up said bid.

Bidder shall set forth in his/her bid:

(1) Name and address of each subcontractor who will perform work or labor or render service to Contractor in excess of ½ of 1 percent of the total bid in accordance with the "Subletting and Subcontracting Fair Practices Act," commencing with Section 4100 of the Public Contract Code.

(2) Portion of the work which will be done by each subcontractor.

FAILURE OF BIDDER TO SPECIFY A SUBCONTRACTOR for any portion of the work to be performed under the contract constitutes an agreement by the bidder to perform that portion of the work himself/herself.

Vendors or suppliers of materials need not be listed.

Pursuant to Section 1770 of the Labor Code, the Department of Industrial Relations has ascertained the general prevailing wage rates to be as listed in the "Prevailing Wage Data Base", located at www.dir.ca.gov, or is available for inspection by interested parties at the address shown above.

3. In the event any Federal funding coming into the Department is used to support any part of the work under this agreement, the Contractor will be required to fill out DFW 868; Federal Funding Accountability and Transparency Act 2006 (FFATA) Form and register Federal Central Contractors Registry, as appropriate. The California Department of Fish and Wildlife (CDFW) will provide the form upon award of contract.

b. Bidder's Security

1. Bids of $5,000 and over shall have enclosed, a ***Cashier's Check, Certified Check, or a Bidder's Bond*** executed as surety by a corporation authorized to issue surety bonds in the State of California, made payable to the California Department of Fish and Wildlife, in an amount equal to at least 10% of the amount bid.

   NO BID WILL BE CONSIDERED UNLESS ONE OF THESE FORMS OF BIDDER'S SECURITY IS ENCLOSED WITH THE BID.

2. If bidder's security is a bidder's bond, it ***MUST*** be executed on the Bidder's Bond form included in the bid documents. Personal checks are not acceptable.

3. Within 5 working days after the receipt of the signed agreement including bonds, the California Department of Fish and Wildlife will return all bidder's security, other than bidder's bond, accompanying proposals that are not to be further considered in making the award. Retained bidder's security will be held until the contract has been fully executed, after which all bidder's security, except bidder's bonds, will be returned.

c. Interpretation of Drawings and Documents

1. Should a bidder find discrepancies in, or omission from, the drawings or special provisions, or should he/she be in doubt as to their meaning, he/she shall at once notify the Engineer not later than seven (7) calendar days prior to bid opening date, and should it be found necessary, a written Addendum will be sent to all bidders. The Department will not be responsible for any oral instructions.

2. INTERPRETATIONS AND ADDENDA: No oral interpretations shall be made to any bidder as to the meaning of any of the contract or be effective to modify any part of the provisions of contract. Every request for any interpretation shall be made in writing and addressed and forwarded to the California Department of Fish and Wildlife, Land and Facilities Engineering Branch, 1010 Riverside Parkway, West Sacramento, CA 95605

d. Addendum

1. Any addendum issued during time of bidding and before the time of bid opening, or forming a part of documents loaned to bidders for the preparation of the bid shall be covered in the bid and shall be a part of the contract. All bidders are responsible to inquire as to addenda issued.

11. Antitrust claims

"The contractor offers and agrees and will require all of his other subcontractors and suppliers to agree to assign to the awarding body all rights, title, and interest in and to all causes of action they may have under Section 4 of the Clayton Act (15 USC § 15) or under the Cartwright Act (Chapter 2 [commencing with § 16700] of Part 2 of Division 7 of the Business and Professions Code) arising from purchases of goods, services, or materials pursuant to the public works contract or subcontract.

The assignment made by the contractor and all additional assignments made by the subcontractors and suppliers shall be deemed to have been made and will become effective at the time the awarding body tenders final payment to the contractor without further acknowledgment or the necessity of tendering to the awarding body any written assignments."

"If an awarding body receives, either through judgment or settlement, a monetary recovery for a cause of action assigned under Government Code sections 4550 – 4554, the assignor shall be entitled to receive reimbursement for actual legal costs incurred and may, on demand, recover from the public body any portion of the recovery, including treble damages, and attributable overcharges that were paid by the assignor but were not paid by the public body as a part of the bid price, less the expenses incurred in obtaining that portion of the recovery. On demand in writing by the assignor, the assignee shall, within one year from such demand, reassign the cause of action assigned under Government Code sections 4550 – 4554 if the assignor has been or may have been injured by the violation of law for which the cause of action arose and (a) the assignee has not been injured thereby, or (b) the assignee declines to file a court action for the cause of action."

12. Employment of Undocumented Aliens

"No state agency or department, as defined in Public Contract Code § 10357, that is subject to this code, shall award a public works contract to a bidder or contractor, nor shall a bidder or contractor be eligible to bid for or receive a public works contract, who has, in the preceding five (5) years, been convicted of violating a state or federal law regarding the employment of undocumented aliens. See Public Contract Code § 6101."

***13.* GenAI Contract Disclosure and Special Provisions**

The State of California seeks to realize the potential benefits of GenAI, through the development and deployment of GenAI tools, while balancing the risks of these new technologies.

Bidder / Offeror / Contractor must notify the State in writing if their solution or service includes, or makes available, any GenAI, including GenAI from third parties or subcontractors.

The State has developed a GenAI Reporting and Factsheet (STD 1000) to be completed by the Bidder / Offeror / Contractor .

Failure to submit the GenAI Reporting and Factsheet (STD 1000) will result in disqualification of the Bidder / Offeror / Contractor.

Failure to report GenAI to the State may void any resulting contract. The State reserves its right to seek any and all relief it may be entitled to as a result of such non-disclosure.

Upon receipt of a Bidder / Offeror / Contractor GenAI Reporting and Factsheet (STD 1000), the state reserves the right to incorporate GenAI Special Provisions into the final contract or reject bids/offers that present an unacceptable level of risk to the state.

D. Preference and Incentive Programs

1. Small Business Preference

Section 14835 et seq. Of the California Government Code requires that a five (5) percent preference be given to bidders who qualify as a small business. The rules and regulations of this law, including the definition of a small business for the delivery of services, are contained in Title 2, California Code of Regulations, Section 1896, et seq. A copy of the regulations is available upon request. To claim the small business preference, which may not exceed $50,000 for any bid, your firm must have its principal place of business located in California, have a complete application (including proof of annual receipts) on file with the State Office of Small Business and DVBE Services (OSDS) by 5:00 p.m. on the date bids are opened, and must be subsequently verified and approved by OSDS. Questions regarding the preference approval should be directed to that office at (916) 375-4940 or (800) 559-5529.

Bidders requesting the SMALL BUSINESS PREFERENCE shall submit with their bid a copy of the small business certification approval letter issued by the Office of Small Business Certification and Resources. See www.pd.dgs.ca.gov

2. Non-Small Business Preference

Section 14838(b)(1)(2) of the California Government Code now provides a five (5%) percent preference for a non-small business. A five percent (5%) bid preference is available to a non-small business claiming twenty-five percent (25%) California certified small business subcontractor participation. If claiming the non-small business subcontractor preference, the bid response must include a list of the small business(es) with which you commit to subcontract in an amount of at least twenty-five percent (25%) of the net bid price with one or more California certified small businesses. Each listed certified small business must perform a “commercially useful function” in the performance of the contract as defined in Government Code Section 14837(d)(4). A Non-Small Business cannot displace a Certified Small Business.

Indicate in your proposal whether or not you are claiming the non-small business preference. The required list of California certified small business subcontracts must be attached to the bid response and must include the following: 1) subcontractor name, 2) address, 3) phone number, 4) a description of the work to be performed and/or products supplied, 5) and the dollar amount or percentage of the net bid price (as specified in the solicitation) per subcontractor.

Bidders claiming the five percent (5%) preference must commit to subcontract at least twenty-five percent (25%) of the net bid price with one or more California certified small businesses. Completed certification applications and required support documents for subcontracts must be submitted to the office of Small Business and DVBE Services (OSDS) no later than 5:00 p.m. on the bid due date, and the OSDS must be able to approve the application as submitted. Questions regarding certification should be directed to the OSDS at (916) 375-4940.

3. DVBE Requirements

The DVBE Incentive, (Senate Bill 115, Chaptered October 2005, Regulations adopted October 2007) provides bidding firms with the opportunity to receive incentive calculations which may then place the bidding firm in line for the contract award when they elect to partner with California certified DVBE businesses. The bidding firm may receive a five (5) percent incentive. The rules and regulations of this law are contained in Title 2, California Code of Regulations, Subchapter 10.6. A copy of the regulations is available upon request.

Bidders claiming DVBE incentive, shall complete the Bidder Declaration Form GSPD-05-106 (See Section F, Attachment) and shall submit with their bid.

a. Program Requirements

Please read the requirements and instructions carefully before you begin.

AUTHORITY. The Disabled Veteran Business Enterprise (DVBE) Participation Goal Program for State contracts is established in Public Contract Code (PCC), §10115 et seq., Military and Veterans Code (MVC), §999 et seq., and California Code of Regulations (CCR), Title 2, §1896.60 et seq. **Recent legislation has modified the program significantly in that a bidder may no longer demonstrate compliance with program requirements by performing a "good faith effort" (GFE).**

The minimum DVBE participation percentage (goal) is 3% for this solicitation unless another percentage is specified in the solicitation. A DVBE incentive will be given to bidders who provide DVBE participation, unless stated elsewhere in the solicitation that the DVBE incentive has been waived.

INTRODUCTION. The bidder must complete the identified form to comply with this solicitation's DVBE program requirements. Bids or proposals (hereafter called "bids") that **fail to submit all required forms and fully document and meet one of the DVBE program requirement options shall be considered non-responsive**.

Information submitted by the intended awardee to comply with this solicitation's DVBE requirements will be verified by the State. If evidence of an alleged violation is found during the verification process, the State shall initiate an investigation, in accordance with the requirements of the PCC §10115, et seq., and MVC §999 et seq., and follow the investigatory procedures required by the CCR §1896.80. Contractors found to be in violation of certain provisions may be subject to loss of certification, penalties and/or contract termination.

Only State of California, Office of Small Business and DVBE Services (OSDS), certified DVBEs (hereafter called "DVBE") who perform a commercially useful function relevant to this solicitation, may be used to satisfy the DVBE program requirements. The criteria and definition for performing a commercially useful function are contained herein on the page entitled **Resources & Information**. Bidders are to verify each DVBE subcontractor's certification with OSDS to ensure DVBE eligibility.

PLEASE READ ALL INSTRUCTIONS CAREFULLY. These instructions contain information about the DVBE program requirements, bidder responsibilities, and the DVBE Bid Incentive. Bidders are responsible for thorough review and compliance with these instructions.

To meet the DVBE program requirements, bidders must complete and fully document at least one of the following compliance options:
Commitment to full DVBE participation - For a bidder who is a DVBE or who is able to meet the commitment to use identified certified DVBE(s) to fulfill the full DVBE participation goal.

COMMITMENT -- Commit to meet or exceed the DVBE participation requirement in this solicitation by either Method A1 (bidder is a California certified DVBE) or A2 (bidder is not a California certified DVBE). Bidders must document DVBE participation commitment by completing and submitting the Bidder Declaration (GSPD-05-106) located elsewhere within the solicitation document. Failure to complete and submit the required forms as instructed shall render the bid non-responsive.

At the State's option prior to award of the contract, a written confirmation from each DVBE subcontractor identified on the Bidder Declaration must be provided. As directed by the State, the written confirmation must be signed by the bidder and/or the DVBE subcontractor(s). The written confirmation may request information that includes but is not limited to the DVBE scope of work, work to be performed by the DVBE, term of intended subcontract with the DVBE, anticipated dates the DVBE will perform required work, rate and conditions of payment, and total amount to be paid to the DVBE. If further verification is necessary, the State will obtain additional information to verify the above requirements.

Method A1. Certified DVBE bidder:

- Commit to performing at least 3% of the contract bid amount (unless otherwise specified) with the prime bidder's firm or in combination with another DVBE(s).
- Document DVBE participation on the Bidder Declaration GSPD-05-106.
- At the State's option a DVBE bidder working in combination with other DVBEs shall submit proof of its commitment by submitting a written confirmation from the DVBE(s) identified as a subcontractor on the Bidder Declaration. When requested, the document must be submitted to the address or facsimile number specified and within the timeframe identified in the notification. Failure to submit the written confirmation as specified may be grounds for bid rejection.

Method A2. Non-DVBE bidder:

- Commit to using certified DVBE(s) for at least 3% (unless otherwise specified) of the bid amount.
- Document DVBE participation on the Bidder Declaration GSPD-05-106.
- At the State's option prior to contract award, a bidder is to submit proof of its commitment by submitting a written confirmation from each DVBE identified as a subcontractor on the Bidder Declaration GSPD-05-106. The awarding department contracting official named in the solicitation may contact each listed DVBE, by mail, fax

or telephone, for verification of the bidder's submitted DVBE information. When requested, the document must be submitted to the address or facsimile number specified and within the timeframe identified in the notification. Failure to submit the written confirmation as specified may be grounds for bid rejection.

b. Bid Incentive Instructions

Please answer the instructions carefully before you begin.

AUTHORITY. The Disabled Veteran Business Enterprise (DVBE) Participation Goal Program for State contracts is established in Public Contract Code (PCC), §10115 et seq., Military and Veterans Code (MVC), §999 et seq., and California Code of Regulations (CCR), Title 2, §1896.60 et seq.

This solicitation requires a minimum DVBE participation percentage or goal of 3%.

DVBE BID INCENTIVE. A DVBE incentive will be given to bidders who provide DVBE participation. For evaluation purposes only, the State shall apply a DVBE Bid incentive to bids that propose California certified DVBE participation as identified on the Bidder Declaration, GSPD-05-106, (located elsewhere within the solicitation document) and confirmed by the State. The DVBE incentive amount for awards based on low price will vary in conjunction with the percentage of DVBE participation. Unless a table that replaces the one below has been expressly established elsewhere within the solicitation, the following percentages will apply for awards based on low price.

Confirmed DVBE Participation of:	DVBE Incentive
5% or Over	5%
4% to 4.99% inclusive	4%
3% to 3.99% inclusive	3%

As applicable:

- Awards based on low price - the net bid price of responsive bids will be reduced (for evaluation purposes only) by the amount of DVBE incentive as applied to the lowest responsive net bid price. If the #1 ranked responsive, responsible bid is a California certified small business, the only bidders eligible for the incentive will be California certified small businesses. The incentive adjustment for awards based on low price cannot exceed 5% or $100,000, whichever is less, of the #1 ranked net bid price. When used in combination with a preference adjustment, the cumulative adjustment amount cannot exceed $100,000.

- Awards based on highest score - the solicitation shall include an individual requirement that identifies incentive points for DVBE participation.

INTRODUCTION. Bidders must document DVBE participation commitment by completing and submitting a Bidder Declaration, GSPD-05-106, (located elsewhere within the solicitation document). Bids or proposals (hereafter called "bids") that **fail to submit the required form to confirm the level of DVBE participation will not be eligible to receive the DVBE incentive.**

Information submitted by the intended awardee to claim the DVBE incentive(s) will be verified by the State. If evidence of an alleged violation is found during the verification process, the State shall initiate an investigation, in accordance with the requirements of the PCC §10115, et seq., and MVC §999 et seq., and follow the investigatory procedures required by the 2 CCR §1896.80. Contractors found to be in violation of certain provisions may be subject to loss of certification, penalties and/or contract termination.

Only State of California, Office of Small Business and DVBE Services (OSDS), certified DVBEs (hereafter called "DVBE") who perform a commercially useful function relevant to this solicitation, may be used to qualify for a DVBE incentive(s). The criteria and definition for performing a commercially useful function are contained herein on the page entitled **Resources & Information**. Bidders are to verify each DVBE subcontractor's certification with OSDS to ensure DVBE eligibility.

At the State's option prior to award of the contract, a written confirmation from each DVBE subcontractor identified on the Bidder Declaration must be provided. As directed by the State, the written confirmation must be signed by the bidder and/or the DVBE subcontractor(s). The written confirmation may request information that includes but is not limited to the DVBE scope of work, work to be performed by the DVBE, term of intended subcontract with the DVBE, anticipated dates the DVBE will perform required work, rate and conditions of payment, and total amount to be paid to the DVBE. If further verification is necessary, the State will obtain additional information to verify compliance with the above requirements.

THE DVBE BUSINESS UTILIZATION PLAN (BUP): DVBE BUPs are a company's commitment to expend a minimum of 3% of its total statewide contract dollars with DVBEs -- this percentage is based on all of its contracts held in California, not just those with the State. A DVBE BUP does not qualify a firm for a DVBE incentive. Bidders with a BUP, must submit a Bidders Declaration (GSPD-05-106) to confirm the DVBE participation for an element of work on this solicitation in order to claim a DVBE incentive(s).

c. Resources and Information

THE FOLLOWING MAY BE USED TO LOCATE DVBE SUPPLIERS:

For questions regarding bid documentation requirements, **contact the contracting official at the awarding department for this solicitation.** For a directory of SB/DVBE Advocates for each department go to: https://www.dgs.ca.gov/PD/Resources/Page-Content/Procurement-Division-Resources-List-Folder/Small-Business-Disabled-Veteran-Business-Enterprise-Advocate-Directory

The Department of General Services, Procurement Division (DGS-PD) provides a tool to search for DVBE businesses to assist bidders in locating DVBEs on Cal eProcure. Go to: https://caleprocure.ca.gov/pages/PublicSearch/supplier-search.aspx?psNewWin=true

U.S. Small Business Administration (SBA): Use the Central Contractor Registration (CCR) on-line database. *Internet contact only* –Database: https://www.sba.gov	**FOR:** Service-Disabled Veteran-owned businesses in California (Remember to verify each DVBE's California certification.)
Local Organizations: Go to http://www.dgs.ca.gov/pd-osds	**FOR:** List of potential DVBE subcontractors
DGS-PD **EProcurement** Website: www.caleprocure.ca.gov Phone: (916)375-2000 Email: eprocure@dgs.ca.gov	**FOR:** • SB/DVBE Search • CSCR Ads • Click on Training tab to Access eProcurement Training Modules including: Small Business (SB)/DVBE Search
DGS-PD **Office of Small Business and DVBE Services (OSDS)** 707 Third Street, Room 1-400, West Sacramento, CA 95605 Website: www.dgs.ca.gov/pd-osds OSDS Receptionist, 8 am-5 pm: (916) 375-4940 PD Receptionist, 8 am-5 pm: (800) 559-5529 Fax: (916) 375-4950 Email: osdchelp@dgs.ca.gov	**FOR:** • Directory of California-Certified DVBEs • Certification Applications • Certification Information • Certification Status, Concerns • General DVBE Program Info. • DVBE Business Utilization Plan • Small Business/DVBE Advocates

Commercially Useful Function Definition

California Code of Regulations, Title 2, § 1896.61(l):

The term "DVBE contractor, subcontractor or supplier" means any person or entity that satisfies the ownership (or management) and control requirements of §1896.61(f); is certified in accordance with §1896.70; and provides services or goods that contribute to the fulfillment of the contract requirements by performing a commercially useful function.

As defined in MVC §999, a person or an entity is deemed to perform a "commercially useful function" if a person or entity does **all** of the following:

- Is responsible for the execution of a distinct element of the work of the contract.
- Carries out the obligation by actually performing, managing, or supervising the work involved.
- Performs work that is normal for its business services and functions.
- Is not further subcontracting a portion of the work is greater than expected to be subcontracted by normal industry practices.

A contractor, subcontractor, or supplier will not be considered to perform a commercially useful function if the contractor's, subcontractor's, or supplier's role is limited to that of an extra participant in a transaction, contract, or project through which funds are passed in order to obtain the appearance of disabled veteran business enterprise participation.

d. DVBE Declarations

Bidders must complete Disabled Veteran Business Enterprise Declarations, STD.843, (See Attachment, Section F, located elsewhere within the solicitation document), when a DVBE contractor or subcontractor will provide materials, supplies, services or equipment [Military and Veterans Code Section 999.2].

e. DVBE Verification & Certification

At the end of the contract, the Contractor will be required to complete the Prime Contractor’s DVBE Subcontracting Report form to certify that he/she has met all of their DVBE Obligations as identified in their Bid.

Final retention will not be released until the Prime Contactor’s DVBE Subcontracting Report form has been completed and returned to the State Engineer.

A. Description of Services

1. Description:

   Contractor shall furnish all labor, equipment, tools, parts, materials, supplies, permits, and incidentals necessary to provide demolition services, abate and remove all hazardous materials, and provide environmental plans as required.

2. Location of Services:

   The location of services shall be performed at Napa/Sonoma Marshes Wildlife Area - Green Island Unit, 2983 Green Island Road, American Canyon, CA. 94503, Napa County.

3. Contract Term Date: Upon DGS approval until August 28, 2026

4. Time of Completion:

   Construction shall be completed within ***SIXTY (60) WORKING DAYS*** following the official "Notice of Start Date" from the State to the Contractor to commence construction.

   Additional contract time will be allowed for delay caused by shortage of materials, provided the Contractor advises Engineer ***IN WRITING*** within fifteen (15) days from the beginning of such delay and provided the Contractor has made diligent effort to get supplies from known sources.

5. License Required:

   A – General Engineering Contractor, or
   B – General Building Contractor

   With the following requirements:

   C22 License:

   If the Bidding Contractor does not possess the required license, then the Bidding Contractor shall subcontract with a contractor having the said license.

   Lead Abatement:

   Lead-Related Certificate (LRC) from the Department of Public Health, Childhood Poisoning Prevention Branch. If the Bidding Contractor does not possess the required certificate, then the Bidding Contractor shall subcontract with a contractor with said Certification.

   The subcontractor may not sublet the work to another contractor. The subcontractor must be listed on the list of Proposed Subcontractors, Attachment 4, page 6, and Attachment 13 GSPD-05-106, page 20, regardless of the amount of work.

   All employees working on asbestos and/or lead abatement **MUST** have a current, valid Certificate.

B. Estimated Cost: $650,000.00

C. Bid Requirements and Information

1. Key Action Dates

Event	Date
IFB available to prospective bidders	**January 6, 2026**
Pre-bid Walkthrough **(Mandatory)**	**February 10, 2026 @ 11:00 AM (Mandatory)**
Bid Opening	**February 26, 2026 @ 2:00 PM**
Bid Due Date	**February 26, 2026 @ 2:00 PM**
Notice of Intent to Award	**March 2, 2026**
Proposed Award Date [See C) 9) f), Page 8]	**May 2026**
Proposed Start of Construction Date	**May 2026**

2. Contacts, Pre-Bid Conference & Reasonable Accommodation

a. For Engineering related questions or other general questions pertaining to the bidding requirements, please contact Robert Benson at 916-996-7593 or Email; Rob.Benson@wildlife.ca.gov.

b. A **Mandatory** pre-bid walkthrough is scheduled at the jobsite as indicated above for the purpose of discussing concerns regarding this IFB. **Contractor is required to attend the mandatory pre-bid walkthrough. Meet at the Green Island Unit parking lot. See Drawing Set, Sheet 1 for location of site.**

c. For contractors who need assistance due to physical impairment, a reasonable accommodation will be provided by the awarding agency upon request for the pre-bid conference/walkthrough. The contractor must call Engineering at 916-376-8648 no later than the fifth (5th) working day prior to the scheduled date and time of the pre-bid conference to arrange for reasonable accommodation.

3. Submission of Bids

a. All bids must be submitted under **sealed** cover and sent to California Department of Fish and Wildlife (CDFW.) The bid must be **received** by the date and time shown in Section C, Bid Requirements and Information, Item 1, Key Action Dates, (page 3). The sealed cover must be plainly marked with the IFB number and title, must show your firm name and address, and must be marked with "DO NOT OPEN", as shown in the following example:

(IFB Number)
(IFB Name)
(Agency Name and Address)
DO NOT OPEN

Bids not submitted under sealed cover may be rejected.

All bids shall include the documents identified in Section F; Required Bid Documents for Bidding Purposes. Bids not including the proper “required attachments" shall be deemed non-responsive. A non-responsive bid is one that does not meet the basic bid requirements.

b. All documents requiring a signature must bear an original signature of a person authorized to bind the bidding firm.

c. Mail, or hand delivered, or overnight express all bids to the following address:

CDFW – Land and Facilities Engineering
Attn: Nikkia Capizzano, AGPA
1010 Riverside Parkway
West Sacramento, CA 95605

d. Bids must be submitted for the performance of all the services described herein. Any deviation from the work special provisions will not be considered and will cause a bid to be rejected.

e. A bid may be rejected if it is conditional or incomplete, or if it contains any alterations of form or other irregularities of any kind. The State may reject any or all bids and may waive an immaterial deviation in a bid. The State's waiver of an immaterial deviation shall in no way modify the IFB document or excuse the bidder from full compliance with all requirements if awarded the agreement.

f. Costs incurred for developing bids and in anticipation of award of the agreement are entirely the responsibility of the bidder and shall not be charged to the State of California.

g. Bid prices/rates shall include the cost of employer payments to or on behalf of employees, subsistence, travel, compensation insurance premiums, unemployment contributions, social security taxes, and any other taxes or assessments, **including but not limited to, sales and use taxes** required by law or otherwise and no additional allowance will be paid unless separate payment provisions in the Agreement should specifically provide otherwise.

h. Bid prices/rates shall also include the cost for obtaining payment and performance bond premiums based on the Total Bid Amount + Contingency (maximum 10%.)

i. An individual who is authorized to bind the bidder contractually shall sign the Bid/Bidder Certification Sheet, page 2. The signature should indicate the title or position that the individual holds in the firm. An unsigned bid may be rejected.

j. A bidder may modify a bid after its submission by withdrawing its original bid and resubmitting a new bid prior to the bid submission deadline. Bidder modifications offered in any other manner, oral or written, will not be considered.

k. A bidder may withdraw its bid by submitting a written withdrawal request to the State, signed by the bidder or an authorized agent. A bidder may thereafter submit a new bid prior to the bid submission deadline. Bids may not be withdrawn without cause subsequent to bid submission deadline.

l. The awarding agency may modify the IFB prior to the date fixed for submission of bids by the issuance of an addendum to all parties who received a bid package.

m. The awarding agency reserves the right to reject all bids. The agency is not required to award an agreement.

n. Before submitting a response to this solicitation, bidders should review, correct all errors and confirm compliance with the IFB requirements.

o. **Bidder shall carefully examine and thoroughly acquaint himself/herself with the conditions at the site of the work, the plans, and the provisions contained in the project special provisions.** He/she shall investigate conditions character, quality and quantity of surface, and sub-surface materials of obstacles to be encountered. Failure by the bidder to acquaint himself/herself with site conditions and available information will not relieve him/her from the responsibility for estimating properly the difficulty or cost of successfully performing the work. No additions or increases to the agreement amount will be made due to a lack of careful examination of work sites and special provisions. **The submission of a bid will be considered as conclusive evidence that the bidder has made such examination.**

p. The State does not accept alternate contract language from a prospective contractor. A bid with such language will be considered a counter proposal and will be rejected. The State's General Terms and Conditions (GTC) are not negotiable.

q. No oral understanding or agreement shall be binding on either party.

4. Evaluation and Selection

a. At the time of bid opening, each bid will be checked for the presence or absence of required information in conformance with the submission requirements of this IFB.

b. The State will evaluate each bid to determine its responsiveness to the published requirements.

c. Bids that contain false or misleading statements, or which provide references, which do not support an attribute or condition claimed by the bidder, may be rejected.

d. Award if made will be to the lowest responsive responsible bidder.

5. Award and Notification

a. Whenever an agreement is awarded under a procedure which provides for competitive bidding, but the agreement is not to be awarded to the low bidder, <u>the low bidder shall be notified by telegram, electronic facsimile transmission, overnight courier, or personal delivery five (5) working days prior to the award of the agreement.</u>

6. Disposition of Bids

a. Upon bid opening, all documents submitted in response to this IFB will become the property of the State of California and will be regarded as public records under the California Public Records Act (Government Code Section 6250 et seq.) and subject to review by the public.

b. Bid packages may be returned only at the bidder's expense, unless such expense is waived by the awarding agency.

7. Sample Standard Agreement Execution

a. This IFB includes, as a separate document, a Sample Standard Agreement (Sample Standard Agreement STD 213) for review. The Sample Standard Agreement contains language that CDFW expects to utilize for this contract.

8. Agreement Execution and Performance

a. Performance shall start not later than the express date set by the CDFW Project Engineer and the Contractor, after all approvals have been obtained and the agreement is fully executed. Should the Contractor fail to commence work at the agreed upon time, the awarding agency, upon five (5) days written notice to the Contractor, reserves the right to terminate the agreement. In addition, the Contractor shall be liable to the State for the difference between Contractor's bid price and the actual cost of performing work by the second lowest bidder or by another contractor.

b. All performance under the agreement shall be completed on or before the termination date of the agreement.

9. Contract

a. **Bids shall remain valid for 120 calendar days after the bid opening date:** The State will endeavor to execute a contract within 120 calendar days from the bid opening date. The contract is not executed until the appropriate State agency has approved the contract. Bidders shall hold their bids for 120 calendar days after the bid opening date. **Upon expiration of 120 calendar days from the bid opening date, bidders may withdraw their bids. If bidder, after expiration of 120 calendar days from the bid opening date fails to withdraw its bid and a contract is subsequently approved by the appropriate State agency and executed, bidder shall have no claim for any reason to amend its bid.**

b. If contract is awarded, the successful responsible low bidder will be required to execute and deliver to the State the required documents.

c. The apparent low bidder shall execute the required number of copies of the contract documents, (Payment and Performance Bonds, General and Automobile Liability Insurance, Workers Compensation and Employers' Liability Insurance, and STD 213) and return them within twenty (20) working days after he/she has received notice that he/she is the apparent successful low bidder. Signature of the apparent successful low bidder on the contract documents will complete identification of these documents.

d. Failure to provide the required executed contract documents within the twenty (20) working days may be deemed refusal of an award which may be cause for forfeiture of bidder's security.

e. The State may award to the next lowest responsible bidder and avail itself of all legal remedies provided by statue.

f. Proposed Award Date identified in C) 1) Key Dates is based on accurate contract documents being returned within the set time as described in c) above. Documents not having the correct language or delays in receiving documents from the Contractor will delay the Proposed Award and Start of Construction Dates.

g. The contract shall be binding upon the State only after approval by the State. Should work begin in advance of receiving notice that the Contract is approved, that work shall be considered as having been done by a volunteer and Contractor shall go unpaid.

h. Contractor and subcontractor(s), regardless of tier must furnish electronic certified payroll records directly to the Labor Commissioner (aka Division of Labor Standards Enforcement).

10. Instructions to Bidders

a. BIDS AND BIDDERS

1. The California Department of Fish and Wildlife (CDFW), reserves the right to reject any or all bids and waive any informality in any bid.

2. To receive consideration, bids shall be made in accordance with the following instructions:

Before submitting bids, all bidders must be licensed in the appropriate classification in accordance with provisions in Division 3, Chapter 9, of the "California Business and Professions Code" as amended.

No bidder may bid on work of a kind for which he/she is not properly licensed by the Contractors State License Board, and any such bid received will be rejected. Joint venture bidders must posses a joint venture license.

No contractor or subcontractor may be listed on a bid proposal for public works project unless registered with the Department of Industrial Relations pursuant to Labor Code section 1725.5 [with limited exceptions from this requirement for bid purposes only under Labor Code section 1771.1(a)]

No contractor or subcontractor may be awarded a contract for public works on a public works project unless registered with the Department of Industrial Relations pursuant to Labor Code section 1725.5

This project is subject to compliance monitoring and enforcement by the Department of Industrial Relations.

State shall not award a contract to a bidder, nor shall a bidder be eligible to bid for or receive a contract, who has, in the preceding five years, has been convicted of violating a state or federal law respecting the employment of undocumented aliens.

Bids ***MUST*** be made on the forms supplied by the California Department of Fish and Wildlife and shall be properly executed in ink with all items filled out; numbers stated in figures; the completed forms shall be without interlineations, alterations, erasures, or alternatives. ***Alternate Bid Forms will not be considered and will be cause for rejection of such bids.***

To be accepted, bids must have an original signature in ink by the bidder or an officer of the bidder who has authority to sign contracts binding upon the bidder. Unsigned bids will be considered non-responsive and will be rejected. Signature stamps are ***NOT*** acceptable.

The bidder is cautioned to check all figures and further understands that the State will not be responsible for any errors or omissions on the part of the bidder in making up said bid.

Bidder shall set forth in his/her bid:

(1) Name and address of each subcontractor who will perform work or labor or render service to Contractor in excess of ½ of 1 percent of the total bid in accordance with the "Subletting and Subcontracting Fair Practices Act," commencing with Section 4100 of the Public Contract Code.

(2) Portion of the work which will be done by each subcontractor.

FAILURE OF BIDDER TO SPECIFY A SUBCONTRACTOR for any portion of the work to be performed under the contract constitutes an agreement by the bidder to perform that portion of the work himself/herself.

Vendors or suppliers of materials need not be listed.

Pursuant to Section 1770 of the Labor Code, the Department of Industrial Relations has ascertained the general prevailing wage rates to be as listed in the "Prevailing Wage Data Base", located at www.dir.ca.gov, or is available for inspection by interested parties at the address shown above.

3. In the event any Federal funding coming into the Department is used to support any part of the work under this agreement, the Contractor will be required to fill out DFW 868; Federal Funding Accountability and Transparency Act 2006 (FFATA) Form and register Federal Central Contractors Registry, as appropriate. The California Department of Fish and Wildlife (CDFW) will provide the form upon award of contract.

b. Bidder's Security

1. Bids of $5,000 and over shall have enclosed, a ***Cashier's Check, Certified Check, or a Bidder's Bond*** executed as surety by a corporation authorized to issue surety bonds in the State of California, made payable to the California Department of Fish and Wildlife, in an amount equal to at least 10% of the amount bid.

   NO BID WILL BE CONSIDERED UNLESS ONE OF THESE FORMS OF BIDDER'S SECURITY IS ENCLOSED WITH THE BID.

2. If bidder's security is a bidder's bond, it ***MUST*** be executed on the Bidder's Bond form included in the bid documents. Personal checks are not acceptable.

3. Within 5 working days after the receipt of the signed agreement including bonds, the California Department of Fish and Wildlife will return all bidder's security, other than bidder's bond, accompanying proposals that are not to be further considered in making the award. Retained bidder's security will be held until the contract has been fully executed, after which all bidder's security, except bidder's bonds, will be returned.

c. Interpretation of Drawings and Documents

1. Should a bidder find discrepancies in, or omission from, the drawings or special provisions, or should he/she be in doubt as to their meaning, he/she shall at once notify the Engineer not later than seven (7) calendar days prior to bid opening date, and should it be found necessary, a written Addendum will be sent to all bidders. The Department will not be responsible for any oral instructions.

2. INTERPRETATIONS AND ADDENDA: No oral interpretations shall be made to any bidder as to the meaning of any of the contract or be effective to modify any part of the provisions of contract. Every request for any interpretation shall be made in writing and addressed and forwarded to the California Department of Fish and Wildlife, Land and Facilities Engineering Branch, 1010 Riverside Parkway, West Sacramento, CA 95605

d. Addendum

1. Any addendum issued during time of bidding and before the time of bid opening, or forming a part of documents loaned to bidders for the preparation of the bid shall be covered in the bid and shall be a part of the contract. All bidders are responsible to inquire as to addenda issued.

11. Antitrust claims

"The contractor offers and agrees and will require all of his other subcontractors and suppliers to agree to assign to the awarding body all rights, title, and interest in and to all causes of action they may have under Section 4 of the Clayton Act (15 USC § 15) or under the Cartwright Act (Chapter 2 [commencing with § 16700] of Part 2 of Division 7 of the Business and Professions Code) arising from purchases of goods, services, or materials pursuant to the public works contract or subcontract.

The assignment made by the contractor and all additional assignments made by the subcontractors and suppliers shall be deemed to have been made and will become effective at the time the awarding body tenders final payment to the contractor without further acknowledgment or the necessity of tendering to the awarding body any written assignments."

"If an awarding body receives, either through judgment or settlement, a monetary recovery for a cause of action assigned under Government Code sections 4550 – 4554, the assignor shall be entitled to receive reimbursement for actual legal costs incurred and may, on demand, recover from the public body any portion of the recovery, including treble damages, and attributable overcharges that were paid by the assignor but were not paid by the public body as a part of the bid price, less the expenses incurred in obtaining that portion of the recovery. On demand in writing by the assignor, the assignee shall, within one year from such demand, reassign the cause of action assigned under Government Code sections 4550 – 4554 if the assignor has been or may have been injured by the violation of law for which the cause of action arose and (a) the assignee has not been injured thereby, or (b) the assignee declines to file a court action for the cause of action."

12. Employment of Undocumented Aliens

"No state agency or department, as defined in Public Contract Code § 10357, that is subject to this code, shall award a public works contract to a bidder or contractor, nor shall a bidder or contractor be eligible to bid for or receive a public works contract, who has, in the preceding five (5) years, been convicted of violating a state or federal law regarding the employment of undocumented aliens. See Public Contract Code § 6101."

***13.* GenAI Contract Disclosure and Special Provisions**

The State of California seeks to realize the potential benefits of GenAI, through the development and deployment of GenAI tools, while balancing the risks of these new technologies.

Bidder / Offeror / Contractor must notify the State in writing if their solution or service includes, or makes available, any GenAI, including GenAI from third parties or subcontractors.

The State has developed a GenAI Reporting and Factsheet (STD 1000) to be completed by the Bidder / Offeror / Contractor .

Failure to submit the GenAI Reporting and Factsheet (STD 1000) will result in disqualification of the Bidder / Offeror / Contractor.

Failure to report GenAI to the State may void any resulting contract. The State reserves its right to seek any and all relief it may be entitled to as a result of such non-disclosure.

Upon receipt of a Bidder / Offeror / Contractor GenAI Reporting and Factsheet (STD 1000), the state reserves the right to incorporate GenAI Special Provisions into the final contract or reject bids/offers that present an unacceptable level of risk to the state.

D. Preference and Incentive Programs

1. Small Business Preference

Section 14835 et seq. Of the California Government Code requires that a five (5) percent preference be given to bidders who qualify as a small business. The rules and regulations of this law, including the definition of a small business for the delivery of services, are contained in Title 2, California Code of Regulations, Section 1896, et seq. A copy of the regulations is available upon request. To claim the small business preference, which may not exceed $50,000 for any bid, your firm must have its principal place of business located in California, have a complete application (including proof of annual receipts) on file with the State Office of Small Business and DVBE Services (OSDS) by 5:00 p.m. on the date bids are opened, and must be subsequently verified and approved by OSDS. Questions regarding the preference approval should be directed to that office at (916) 375-4940 or (800) 559-5529.

Bidders requesting the SMALL BUSINESS PREFERENCE shall submit with their bid a copy of the small business certification approval letter issued by the Office of Small Business Certification and Resources. See www.pd.dgs.ca.gov

2. Non-Small Business Preference

Section 14838(b)(1)(2) of the California Government Code now provides a five (5%) percent preference for a non-small business. A five percent (5%) bid preference is available to a non-small business claiming twenty-five percent (25%) California certified small business subcontractor participation. If claiming the non-small business subcontractor preference, the bid response must include a list of the small business(es) with which you commit to subcontract in an amount of at least twenty-five percent (25%) of the net bid price with one or more California certified small businesses. Each listed certified small business must perform a “commercially useful function” in the performance of the contract as defined in Government Code Section 14837(d)(4). A Non-Small Business cannot displace a Certified Small Business.

Indicate in your proposal whether or not you are claiming the non-small business preference. The required list of California certified small business subcontracts must be attached to the bid response and must include the following: 1) subcontractor name, 2) address, 3) phone number, 4) a description of the work to be performed and/or products supplied, 5) and the dollar amount or percentage of the net bid price (as specified in the solicitation) per subcontractor.

Bidders claiming the five percent (5%) preference must commit to subcontract at least twenty-five percent (25%) of the net bid price with one or more California certified small businesses. Completed certification applications and required support documents for subcontracts must be submitted to the office of Small Business and DVBE Services (OSDS) no later than 5:00 p.m. on the bid due date, and the OSDS must be able to approve the application as submitted. Questions regarding certification should be directed to the OSDS at (916) 375-4940.

3. DVBE Requirements

The DVBE Incentive, (Senate Bill 115, Chaptered October 2005, Regulations adopted October 2007) provides bidding firms with the opportunity to receive incentive calculations which may then place the bidding firm in line for the contract award when they elect to partner with California certified DVBE businesses. The bidding firm may receive a five (5) percent incentive. The rules and regulations of this law are contained in Title 2, California Code of Regulations, Subchapter 10.6. A copy of the regulations is available upon request.

Bidders claiming DVBE incentive, shall complete the Bidder Declaration Form GSPD-05-106 (See Section F, Attachment) and shall submit with their bid.

a. Program Requirements

Please read the requirements and instructions carefully before you begin.

AUTHORITY. The Disabled Veteran Business Enterprise (DVBE) Participation Goal Program for State contracts is established in Public Contract Code (PCC), §10115 et seq., Military and Veterans Code (MVC), §999 et seq., and California Code of Regulations (CCR), Title 2, §1896.60 et seq. **Recent legislation has modified the program significantly in that a bidder may no longer demonstrate compliance with program requirements by performing a "good faith effort" (GFE).**

The minimum DVBE participation percentage (goal) is 3% for this solicitation unless another percentage is specified in the solicitation. A DVBE incentive will be given to bidders who provide DVBE participation, unless stated elsewhere in the solicitation that the DVBE incentive has been waived.

INTRODUCTION. The bidder must complete the identified form to comply with this solicitation's DVBE program requirements. Bids or proposals (hereafter called "bids") that **fail to submit all required forms and fully document and meet one of the DVBE program requirement options shall be considered non-responsive**.

Information submitted by the intended awardee to comply with this solicitation's DVBE requirements will be verified by the State. If evidence of an alleged violation is found during the verification process, the State shall initiate an investigation, in accordance with the requirements of the PCC §10115, et seq., and MVC §999 et seq., and follow the investigatory procedures required by the CCR §1896.80. Contractors found to be in violation of certain provisions may be subject to loss of certification, penalties and/or contract termination.

Only State of California, Office of Small Business and DVBE Services (OSDS), certified DVBEs (hereafter called "DVBE") who perform a commercially useful function relevant to this solicitation, may be used to satisfy the DVBE program requirements. The criteria and definition for performing a commercially useful function are contained herein on the page entitled **Resources & Information**. Bidders are to verify each DVBE subcontractor's certification with OSDS to ensure DVBE eligibility.

PLEASE READ ALL INSTRUCTIONS CAREFULLY. These instructions contain information about the DVBE program requirements, bidder responsibilities, and the DVBE Bid Incentive. Bidders are responsible for thorough review and compliance with these instructions.

To meet the DVBE program requirements, bidders must complete and fully document at least one of the following compliance options:
Commitment to full DVBE participation - For a bidder who is a DVBE or who is able to meet the commitment to use identified certified DVBE(s) to fulfill the full DVBE participation goal.

COMMITMENT -- Commit to meet or exceed the DVBE participation requirement in this solicitation by either Method A1 (bidder is a California certified DVBE) or A2 (bidder is not a California certified DVBE). Bidders must document DVBE participation commitment by completing and submitting the Bidder Declaration (GSPD-05-106) located elsewhere within the solicitation document. Failure to complete and submit the required forms as instructed shall render the bid non-responsive.

At the State's option prior to award of the contract, a written confirmation from each DVBE subcontractor identified on the Bidder Declaration must be provided. As directed by the State, the written confirmation must be signed by the bidder and/or the DVBE subcontractor(s). The written confirmation may request information that includes but is not limited to the DVBE scope of work, work to be performed by the DVBE, term of intended subcontract with the DVBE, anticipated dates the DVBE will perform required work, rate and conditions of payment, and total amount to be paid to the DVBE. If further verification is necessary, the State will obtain additional information to verify the above requirements.

Method A1. Certified DVBE bidder:

- Commit to performing at least 3% of the contract bid amount (unless otherwise specified) with the prime bidder's firm or in combination with another DVBE(s).
- Document DVBE participation on the Bidder Declaration GSPD-05-106.
- At the State's option a DVBE bidder working in combination with other DVBEs shall submit proof of its commitment by submitting a written confirmation from the DVBE(s) identified as a subcontractor on the Bidder Declaration. When requested, the document must be submitted to the address or facsimile number specified and within the timeframe identified in the notification. Failure to submit the written confirmation as specified may be grounds for bid rejection.

Method A2. Non-DVBE bidder:

- Commit to using certified DVBE(s) for at least 3% (unless otherwise specified) of the bid amount.
- Document DVBE participation on the Bidder Declaration GSPD-05-106.
- At the State's option prior to contract award, a bidder is to submit proof of its commitment by submitting a written confirmation from each DVBE identified as a subcontractor on the Bidder Declaration GSPD-05-106. The awarding department contracting official named in the solicitation may contact each listed DVBE, by mail, fax

or telephone, for verification of the bidder's submitted DVBE information. When requested, the document must be submitted to the address or facsimile number specified and within the timeframe identified in the notification. Failure to submit the written confirmation as specified may be grounds for bid rejection.

b. Bid Incentive Instructions

Please answer the instructions carefully before you begin.

AUTHORITY. The Disabled Veteran Business Enterprise (DVBE) Participation Goal Program for State contracts is established in Public Contract Code (PCC), §10115 et seq., Military and Veterans Code (MVC), §999 et seq., and California Code of Regulations (CCR), Title 2, §1896.60 et seq.

This solicitation requires a minimum DVBE participation percentage or goal of 3%.

DVBE BID INCENTIVE. A DVBE incentive will be given to bidders who provide DVBE participation. For evaluation purposes only, the State shall apply a DVBE Bid incentive to bids that propose California certified DVBE participation as identified on the Bidder Declaration, GSPD-05-106, (located elsewhere within the solicitation document) and confirmed by the State. The DVBE incentive amount for awards based on low price will vary in conjunction with the percentage of DVBE participation. Unless a table that replaces the one below has been expressly established elsewhere within the solicitation, the following percentages will apply for awards based on low price.

Confirmed DVBE Participation of:	DVBE Incentive
5% or Over	5%
4% to 4.99% inclusive	4%
3% to 3.99% inclusive	3%

As applicable:

- Awards based on low price - the net bid price of responsive bids will be reduced (for evaluation purposes only) by the amount of DVBE incentive as applied to the lowest responsive net bid price. If the #1 ranked responsive, responsible bid is a California certified small business, the only bidders eligible for the incentive will be California certified small businesses. The incentive adjustment for awards based on low price cannot exceed 5% or $100,000, whichever is less, of the #1 ranked net bid price. When used in combination with a preference adjustment, the cumulative adjustment amount cannot exceed $100,000.

- Awards based on highest score - the solicitation shall include an individual requirement that identifies incentive points for DVBE participation.

INTRODUCTION. Bidders must document DVBE participation commitment by completing and submitting a Bidder Declaration, GSPD-05-106, (located elsewhere within the solicitation document). Bids or proposals (hereafter called "bids") that **fail to submit the required form to confirm the level of DVBE participation will not be eligible to receive the DVBE incentive.**

Information submitted by the intended awardee to claim the DVBE incentive(s) will be verified by the State. If evidence of an alleged violation is found during the verification process, the State shall initiate an investigation, in accordance with the requirements of the PCC §10115, et seq., and MVC §999 et seq., and follow the investigatory procedures required by the 2 CCR §1896.80. Contractors found to be in violation of certain provisions may be subject to loss of certification, penalties and/or contract termination.

Only State of California, Office of Small Business and DVBE Services (OSDS), certified DVBEs (hereafter called "DVBE") who perform a commercially useful function relevant to this solicitation, may be used to qualify for a DVBE incentive(s). The criteria and definition for performing a commercially useful function are contained herein on the page entitled **Resources & Information**. Bidders are to verify each DVBE subcontractor's certification with OSDS to ensure DVBE eligibility.

At the State's option prior to award of the contract, a written confirmation from each DVBE subcontractor identified on the Bidder Declaration must be provided. As directed by the State, the written confirmation must be signed by the bidder and/or the DVBE subcontractor(s). The written confirmation may request information that includes but is not limited to the DVBE scope of work, work to be performed by the DVBE, term of intended subcontract with the DVBE, anticipated dates the DVBE will perform required work, rate and conditions of payment, and total amount to be paid to the DVBE. If further verification is necessary, the State will obtain additional information to verify compliance with the above requirements.

THE DVBE BUSINESS UTILIZATION PLAN (BUP): DVBE BUPs are a company's commitment to expend a minimum of 3% of its total statewide contract dollars with DVBEs -- this percentage is based on all of its contracts held in California, not just those with the State. A DVBE BUP does not qualify a firm for a DVBE incentive. Bidders with a BUP, must submit a Bidders Declaration (GSPD-05-106) to confirm the DVBE participation for an element of work on this solicitation in order to claim a DVBE incentive(s).

c. Resources and Information

THE FOLLOWING MAY BE USED TO LOCATE DVBE SUPPLIERS:

For questions regarding bid documentation requirements, **contact the contracting official at the awarding department for this solicitation.** For a directory of SB/DVBE Advocates for each department go to: https://www.dgs.ca.gov/PD/Resources/Page-Content/Procurement-Division-Resources-List-Folder/Small-Business-Disabled-Veteran-Business-Enterprise-Advocate-Directory

The Department of General Services, Procurement Division (DGS-PD) provides a tool to search for DVBE businesses to assist bidders in locating DVBEs on Cal eProcure. Go to: https://caleprocure.ca.gov/pages/PublicSearch/supplier-search.aspx?psNewWin=true

U.S. Small Business Administration (SBA): Use the Central Contractor Registration (CCR) on-line database. *Internet contact only* –Database: https://www.sba.gov	**FOR:** Service-Disabled Veteran-owned businesses in California (Remember to verify each DVBE's California certification.)
Local Organizations: Go to http://www.dgs.ca.gov/pd-osds	**FOR:** List of potential DVBE subcontractors
DGS-PD **EProcurement** Website: www.caleprocure.ca.gov Phone: (916)375-2000 Email: eprocure@dgs.ca.gov	**FOR:** • SB/DVBE Search • CSCR Ads • Click on Training tab to Access eProcurement Training Modules including: Small Business (SB)/DVBE Search
DGS-PD **Office of Small Business and DVBE Services (OSDS)** 707 Third Street, Room 1-400, West Sacramento, CA 95605 Website: www.dgs.ca.gov/pd-osds OSDS Receptionist, 8 am-5 pm: (916) 375-4940 PD Receptionist, 8 am-5 pm: (800) 559-5529 Fax: (916) 375-4950 Email: osdchelp@dgs.ca.gov	**FOR:** • Directory of California-Certified DVBEs • Certification Applications • Certification Information • Certification Status, Concerns • General DVBE Program Info. • DVBE Business Utilization Plan • Small Business/DVBE Advocates

Commercially Useful Function Definition

California Code of Regulations, Title 2, § 1896.61(l):

The term "DVBE contractor, subcontractor or supplier" means any person or entity that satisfies the ownership (or management) and control requirements of §1896.61(f); is certified in accordance with §1896.70; and provides services or goods that contribute to the fulfillment of the contract requirements by performing a commercially useful function.

As defined in MVC §999, a person or an entity is deemed to perform a "commercially useful function" if a person or entity does **all** of the following:

- Is responsible for the execution of a distinct element of the work of the contract.
- Carries out the obligation by actually performing, managing, or supervising the work involved.
- Performs work that is normal for its business services and functions.
- Is not further subcontracting a portion of the work is greater than expected to be subcontracted by normal industry practices.

A contractor, subcontractor, or supplier will not be considered to perform a commercially useful function if the contractor's, subcontractor's, or supplier's role is limited to that of an extra participant in a transaction, contract, or project through which funds are passed in order to obtain the appearance of disabled veteran business enterprise participation.

d. DVBE Declarations

Bidders must complete Disabled Veteran Business Enterprise Declarations, STD.843, (See Attachment, Section F, located elsewhere within the solicitation document), when a DVBE contractor or subcontractor will provide materials, supplies, services or equipment [Military and Veterans Code Section 999.2].

e. DVBE Verification & Certification

At the end of the contract, the Contractor will be required to complete the Prime Contractor’s DVBE Subcontracting Report form to certify that he/she has met all of their DVBE Obligations as identified in their Bid.

Final retention will not be released until the Prime Contactor’s DVBE Subcontracting Report form has been completed and returned to the State Engineer.

SCO ID: 3600-P2X990XX

STATE OF CALIFORNIA - DEPARTMENT OF GENERAL SERVICES

STANDARD AGREEMENT

STD 213 (Rev. 04/2020)

AGREEMENT NUMBER	PURCHASING AUTHORITY NUMBER (If Applicable)
P2X990XX	

1. This Agreement is entered into between the Contracting Agency and the Contractor named below:

CONTRACTING AGENCY NAME

California Department of Fish and Wildlife

CONTRACTOR NAME

Legal Name dba Name

2. The term of this Agreement is:

START DATE

Upon CDFW Approval (<less than $49,999.99) or DGS Approval (> $50,000.00), through (# Months), following notice from the State to the Contractor to commence.

THROUGH END DATE

3. The maximum amount of this Agreement is:

Written Amount and No Cents ($Dollar Amount)

4. The parties agree to comply with the terms and conditions of the following exhibits, which are by this reference made a part of the Agreement.

	Exhibits	Title	Pages
	Exhibit A	Scope of Work	X
	Exhibit A1	Scope of Work Cont.	X
	Exhibit B	Budget Detail and Payment Provisions	X
+ -	Exhibit C *	General Terms and Conditions (GTC 02/2025)	*
+ -	Exhibit E	Federal Provisions (Remove if not Required)	3
+ -	Exhibit G	Additional Provisions (Public Works)	20
+ -	Exhibit P	Maps (Remove if not Required)	X
+ -	Addendum 1	Dated (Remove if not Required)	X
+ -	Attachment	Attachment 1 (Remove if not Required)	X
+ -	STD 18	Standard California Non discrimination Construction Contract Specifications	2
+ -	Drawings	XXX-XXXX-XXXX Dated: XX/XX/XXXX (Remove if not Required)	X Sheets

Items shown with an asterisk (*), are hereby incorporated by reference and made part of this agreement as if attached hereto.
These documents can be viewed at https://www.dgs.ca.gov/OLS/Resources

IN WITNESS WHEREOF, THIS AGREEMENT HAS BEEN EXECUTED BY THE PARTIES HERETO.

CONTRACTOR

CONTRACTOR NAME (if other than an individual, state whether a corporation, partnership, etc.)

Legal Name dba Name

CONTRACTOR BUSINESS ADDRESS	CITY	STATE	ZIP

PRINTED NAME OF PERSON SIGNING	TITLE
CONTRACTOR AUTHORIZED SIGNATURE	DATE SIGNED

STATE OF CALIFORNIA - DEPARTMENT OF GENERAL SERVICES

STANDARD AGREEMENT

STD 213 (Rev. 04/2020)

AGREEMENT NUMBER	PURCHASING AUTHORITY NUMBER (If Applicable)
P2X990XX	

STATE OF CALIFORNIA

CONTRACTING AGENCY NAME			
California Department of Fish and Wildlife			
CONTRACTING AGENCY ADDRESS	CITY	STATE	ZIP
1010 Riverside Parkway	West Sacramento	CA	95605
PRINTED NAME OF PERSON SIGNING	TITLE		
Yujie Jin	Branch Chief, Land and Facilities Engineering		
CONTRACTING AGENCY AUTHORIZED SIGNATURE	DATE SIGNED		
CALIFORNIA DEPARTMENT OF GENERAL SERVICES APPROVAL	EXEMPTION (If Applicable)		

PROJECT NAME **P2X990XX**
CONTRACTOR
EXHIBIT A – SCOPE OF WORK

1. Description: (Paste 1 to 4 from Instructions to Bidders)

   Provide all labor, tools, equipment, materials, incidentals, permits and taxes necessary to xxxx and other miscellaneous work.

2. Location of Services:

   The location of services shall be performed at (physical address of project location/facility required)

3. Time of Completion

   Construction shall be completed within ____*(__)*_____ ***WORKING DAYS*** following the official "Notice of Start Date" issued by the CDFW Engineer from the State to the Contractor to commence construction.

   Additional contract time will be allowed for delay caused by shortage of materials provided Contractor advises Engineer ***IN WRITING*** within 15 days from the beginning of such delay and provided Contractor has made diligent effort to get supplies from known sources.

4. License Required: X

5. Items of Work

   All items of work on the contract form are to be complete in place. In addition, the specified items shall be in accordance with the following and shall include and furnish all labor, tools, equipment, materials, permits and taxes necessary to:

   Item 1 - Install …

   Item 2 - Contingencies are for changes due to unforeseen items of work, and/or adjustments in the quantities of items bid on a unit price basis, as may be determined and allowed by the Engineer. The total amount to be paid under this item may be from zero (if no changes are allowed) to the full amount, as determined by the Engineer.

6. The Project Officials during the term of this agreement will be:

CDFW Engineer	Contractor Project Director
Name: CDFW Engineer	Name: XXX Contractor
Phone: (916) XXX-XXXX	Phone: (XXX) XXX-XXXX
E mail: xxxxx.xxxx@wildlife.ca.gov	E mail: xxxxxxxxxxx

SAMPLE

1. Invoicing and Payment

A. For construction services satisfactorily rendered, and upon receipt and approval of the invoices, the State agrees to compensate the Contractor for actual expenditures incurred in accordance with the rates specified herein, which is attached hereto and made a part of this Agreement.

B. The Contractor agrees to accept payment only in the form of a warrant issued by the California State Controller's Office (SCO). No other payment method shall be made in the payment of these invoices.

C. Contractor shall submit an original and one (1) copy of the invoice, which properly details all charges, expenses, direct and indirect costs. Invoices shall be submitted by mail or email to:

Contract Manager:	AGPA
Region/Division:	Wildlife and Fisheries Division/Facilities Engineering
Address:	1010 Riverside Parkway, West Sacramento, CA 95605
Email Address:	AGPA@wildlife.ca.gov.

D. The original and one (1) approved copy of the invoice will be forwarded to the Department of Fish and Wildlife's Accounting Claims Section by the Contract Manager. Payment of any invoice will be made only after receipt of a complete, adequately supported, properly documented and accurately addressed invoice. Failure to use the address exactly as provided above, may result in the return of the invoice to the Contractor. All invoices must be approved by the Contract Manager.

E. Prices paid for the various items of the contract shall include full compensation for furnishing all material, labor, tools, and equipment, and doing all work involved in accomplishing the fulfillment of the plans and specification as herein specified. Items necessary for the completion of the work for which no separate prices are herein included shall be considered included in the various items of the contract.

F. Progress payments shall only be made by the State in the event the contract term is greater than twenty (20) working days. The Contractor may submit progress payment invoices on completion of work not more frequently than every thirty (30) days in arrears.

G. No progress payments shall be made for less than twenty (20) working days.

H. All contracts shall have five (5) percent retention held for thirty (30) calendar days after completion of the work and then released upon receipt of invoice.

I. Five percent (5%) shall be retained from each progress payment and held by the State as partial security for the fulfillment of the contract by the Contractor. The State shall pay the Contractor the value of such work, as estimated therein, after deducting therefrom all previous payments, and all amounts to be retained under the provisions of

this Agreement. Final retention shall be held thirty (30) calendar days from final inspection and acceptance of the completed scope of work and then released upon receipt of invoice.

J. The quantities of items shown on the contract form are determined by computations based on the details and dimensions shown on the plans, and no guarantee is made that the actual quantities, as constructed will be the quantities shown on the contract form.

If no changes are made in the work which affects the quantity of an item paid for on a per unit price basis, no allowance will be made in the event the quantity, as constructed, does not equal the quantity shown on the contract form.

K. The provisions of Section 9-1.16C, Materials On Hand, of DOT Standard Specifications which pertain to the value of materials delivered to the job site and stored for use, shall not apply. Payment for material delivered to the job site shall be made only for that portion of such material complete in place, as specified, at the time the estimate for progress payment is made. No payment shall be paid for materials delivered and stored. Mobilization, if there be such an item, will be paid in accordance with Section 9-1.16D, of the DOT Standard Specifications except that the retention of funds provision of Item D above shall apply to the contract lump sum item of mobilization.

L. The invoice shall contain the following information:

1. The word “Invoice” should appear in a prominent location at the top of the page(s);

2. Printed name of the Contractor;

3. Business address of the Contractor including P.O. Box, City, State, and Zip Code;

4. Name of the Region/Division of the Department of Fish and Wildlife being billed;

5. The date of the invoice and the time period covered;

6. The number of the agreement upon which the claim is based, and;

7. An itemized account of the services for which the Department of Fish and Wildlife is being billed. Include all of the following:

   a. The time period covered by the invoice, i.e., the term “from” and “to”;

   b. A description of the services performed based on Items identified in Item 4; “Budget Detail”;

   c. The total amount due. This should be in a prominent location in the lower right-hand portion of the last page and clearly distinguished from other figures or computations appearing on the invoice; the total amount due shall include

all costs incurred by the Contractor including retention under the terms of this agreement.

2. CONTRACT WRITTEN PRIOR TO APPROVAL OF THE BUDGET ACT

A. It is mutually understood between the parties that this Agreement may have been written prior to approval of the Budget Act for the mutual benefit of both parties in order to avoid program and fiscal delays.

B. This Agreement is valid and enforceable only if sufficient funds are made available by the Budget Act for the Fiscal Year(s) involved for the purposes of this program. In addition, this Agreement is subject to any additional restrictions, limitations, or conditions enacted by the Legislature and contained in the Budget Bill or any statute enacted by the Legislature which may affect the provisions, terms, or funding of this Agreement in any manner.

C. It is mutually agreed that if the Budget Act of the current year and/or any subsequent years covered under this Agreement does not appropriate sufficient funds for the program, this Agreement shall be of no further force and effect. In this event, the State shall have no liability to pay any funds whatsoever to the Contractor or to furnish any other considerations under this Agreement and the Contractor shall not be obligated to perform any additional provisions of this Agreement.

D. If funding for any fiscal year is reduced or deleted by the Budget Act for purposes of this program, the State shall have the option to either cancel this Agreement with no liability occurring to the State, or offer an agreement amendment to the Contractor to reflect the reduced amount.

3. Prompt Payment Clause

Payment will be made within 45 calendar days of receipt of an undisputed invoice by Department of Fish and Wildlife Contract Manager as stated in Government Code, Chapter 4.5, commencing with Section 927.

4. Prompt Payment Clause

Payment will be made within 45 calendar days of receipt of an undisputed invoice by California Department of Fish and Wildlife Contract Manager as stated in Government Code, Chapter 4.5, commencing with Section 927.

5. Budget Detail

Item No.	Approx. Quantity	Items of Work Description	Unit Price	Item Total
1.	1 Job	Provide and furnish all labor, tools, equipment, materials, permits and taxes necessary to [Item Description]	Lump Sum	
2.	X lf.	Provide and furnish all labor, tools, equipment, materials, permits and taxes necessary to [Item Description]	Per _____	$
3.	As Determined by the Engineer	Contingencies (if Applicable – See Below)	Lump Sum	$
		TOTALBID # 1: Sum of Items 1, 2 and 3		$[Contract Total]

SAMPLE

5. Contingencies

Contingencies may be added to the final bid cost. Actual Percentage Amount shall be determined at time of Contract Award and may be from zero percent to 10 percent as determined by the Engineer.

Contingencies are for changes due to unforeseen items of work, and/or adjustments in the quantities of items bid on a unit price basis, as may be determined and allowed by the Engineer. The total amount to be paid under this item may be from zero (if no changes are allowed) to the full amount, as determined by the Engineer.

A. General

The Contractor shall visit and determine the actual condition of the site prior to submitting the bid and shall familiarize themselves of the work in place. **Contractor shall investigate conditions character, quality and quantity of surface, and sub-surface materials of obstacles to be encountered. Failure by the Contractor to acquaint himself/herself with site conditions and available information will not relieve him/her from the responsibility for estimating properly the difficulty or cost of successfully performing the work. The submission of a bid will be considered as conclusive evidence that the Contractor has made such examination.** No claim of the Contractor shall be made as a result of different physical conditions of any item or exposed work if such condition is exposed and present at the time of inspection. If any unknown physical condition exists or is not exposed at the time of site inspection, unless noted in these specifications, an equitable adjustment will be made.

All work is to be performed in accordance with the Standard Specifications as stated below, except as provided in the General Conditions, Technical Specifications, and any applicable drawings. The provisions of Section 12-1.04, DOT Standard Specifications, regarding flagging costs shall not apply. The contractor shall be solely responsible for all flagging costs.

All materials and workmanship shall comply with the following:

State and Federal Codes:

1. 2022 California Code of Regulations (CCR)
2. 2022 California Administrative Code (CAC), (CCR, Title 24, Part 1)
3. 2022 California Building Code (CBC), Volumes 1, and 2, (CCR, Title 24, Part 2) (Based on 2021 International Building Code with 2022 California Amendments)
4. 2022 California Electrical Code (CEC), (CCR, Title 24, Part 3) (2020 National Electric Code (NEC) with 2022 California Amendments)
5. 2022 California Energy Code, (CCR, Title 24, Part 6)
6. 2022 California Fire Code (CFC), (CCR, Title 24, Part 9) (Based on 2021 International Fire Code with 2022 California Amendments)
7. 2022 CFC Section 3303.1.1. - Site Safety Plans
8. 2022 California Existing Building Code, (CCR, Title 24, Part 10) (Based on the 2021 International Existing Building Code)
9. 2022 California Green Building Standards Code, (CCR, Title 24, Part 11)
10. 2022 California Referenced Standards Code, (CCR, Title 24, Part 12);
11. Reference Code Sections for Applicable Standards; 2022 CBC, Chapter 35 or 2022 CFC, Chapter 80
12. Title 8 California Code of Regulations (CCR), CAL/OSHA Regulations-Safety Orders issued by Division of Industrial Safety of the State of California
13. Title 19 C.C.R., Public Safety, SFM Regulations, List of Federal Codes & Standards (if applicable)
14. DOT Standard Specifications and/or Plans; State of California, DOT, 2022

Additional Documents which are attached hereto and made a part of this agreement;

1. Drawing W02-2025-001 Dated: 08/15/2025 Sheets: Two (2)
2. Attachment 1 - Demolition Level Asbestos and Lead Survey Report
3. Attachment 2 - Limited Asbestos in Surface Soils Survey
4. Attachment 3 - Lead Related Construction Soils Sampling

B. <u>Insurance Requirements:</u>

Contractor will be required to supply proof of, and maintain, liability coverage as outlined in Exhibit G, Insurance, Item 12B – Insurance Requirements which is attached hereto and will be part of the resulting agreement. These policy types include:

- Commercial General Liability
- Automobile Liability
- Worker's Compensation and Employer's Liability
- Pollution Liability with Hazardous Waste Transporter MCS-90 Endorsement

Contractor will be required to prove current and valid Hazardous Waste Transporter Registration issued by the California Department of Toxic Substances Control (DTSC).

❖ **The above policies must each be endorsed to include "The State of California, its officers, agents and employees as additional insured but only with respect to work performed under the Contract".**

C. <u>Bond Requirements</u>

Contractor will be required to supply bonds as outlined in Exhibit G, Item 13 – Contract Bonds which is attached hereto and will be part of the resulting agreement. The bonds required shall be:

- Performance Bond
- Payment Bond

D. <u>License/Permit/Notification Requirements</u>

1. License Requirements;
   a. The Contractor shall possess and maintain throughout the duration of this Agreement current licenses, certifications, and necessary permits as required by applicable Federal, State, and/or County jurisdictions for the removal, transporting, disposal or other regulated activity related to the work of this Agreement.
   b. The Contractor shall meet the requirements of Title 17, California Department of Public Health for all lead abatement activities.
2. Permit/Plan Requirements;
   a. Contractor shall be responsible for obtaining and submitting the following permits and plans to the Contract Manager prior to mobilization;
      - Napa County Septic Permit for Destruction of Two (2) Septic Tanks
      - Bay Area Air Quality District Management District (BAAQMD) Permit
      - Building Permits (Demolition) - **Not Required**
      - Grading Permit - **Not Required**
      - Bay Conservation and Development Commission (BCDC) - **Not Required**
      - Stormwater Pollution Prevention Plan (SWWPP)
      - Site Safety Plan per 2022 California Fire Code Section 3303.1.1
   b. **Site Safety Plan shall be approved by the local State Fire Marshal before mobilization.**

c. CDFW shall be responsible for the following:

- California Environmental Quality Act (CEQA) Permit

3. Notification Requirements

- In accordance with the Bay Area Air Pollution Control District, Contractor shall provide written notification to the U.S.EPA and the California Air Resources Board 10 working days prior to commencement of demolition activities.

E. Quality Control

The Contractor shall be responsible for the completeness of his/her work. He/she shall be responsible for the progress of his/her work until final completion and acceptance of same by the State and shall make such checks on the work as may be necessary to assure conformance with these specifications.

F. Work Schedule

The Contractor shall furnish the Engineer with a proposed work schedule ***SEVEN (7) DAYS PRIOR TO BEGINNING WORK and*** The Contractor shall submit at such times as may be requested by the Engineer, schedules which shall show the order in which the Contractor proposes to carry on the work with dates at which the Contractor will start the several parts of the work and estimated dates of completion of the several parts.

G. Submittal Process

The Contractor shall submit a detailed outline of procedures and equipment for meeting the requirements of Federal, State and County Restrictions and Requirements.

H. Clean Up and Disposal of Refuse

Upon completion of the work under this contract, the Contractor shall remove all remaining excess materials, waste, rubbish, debris, temporary facilities and other equipment from the site. Final approval of the work done under these specifications will not be given until the final cleanup shall have met with the approval of the Engineer.

All material that results from clearing, grubbing, stripping, demolition/removal, excavation, and is not to be incorporated in the work shall become the property of the Contractor and shall be removed from the site and lawfully disposed of by the Contractor at his/her expense.

Surplus materials, resulting from excavations that are not required for backfill construction are the property of the Contractor.

I. Restoration of Improvements

Any damage to existing facilities, structures or improvements caused by the Contractor, his/her equipment or workmen, during the term of this contract, shall be repaired and the damaged item(s) restored to as good a condition as existed at the time work commenced at the Contractor's own expense.

J. DVBE Verification & Certification

Final retention will not be released until the Prime Contactor's DVBE Subcontracting Report (Form 817) has been completed and returned to the State Engineer.

At the end of the contract, the Contractor will be required to complete the Prime Contractor's DVBE Subcontracting Report (Form 817) to certify that he/she has met all of their DVBE Obligations as identified in their Bid.

1. Use of Subcontractor(s)

   The Contractor shall be responsible for all work performed. All persons engaged in the work will be considered employees of the Contractor. When any subcontractor fails to execute a portion of the work in a manner satisfactory to the State, the Contractor shall immediately remove such subcontractor upon written request of the State, and the subcontractor shall not be employed for any portion of the contract. The State will not entertain requests to arbitrate disputes among subcontracts concerning responsibility for performing any part of the work.

2. Prime Contractor DVBE Subcontracting Form (Form 817)

   If the Contractor enters into a subcontract with a Disabled Veteran Business Enterprise (DVBE), the CDFW and the Contractor are required to follow Military and Veterans Code Section 999.5, 999.55 and 999.7. Upon request by CDFW, the Contractor shall provide proof of payment for the DVBE work.

   Pursuant to the Military and Veterans Code (M&VC) Section 999.5, if the Contractor has entered into a subcontract with a DVBE, then the Contractor must certify to CDFW through the Contractor DVBE Subcontracting Form (Form STD 817), before releasing final retention payment, all of the following:

   a. The total bid amount and the total final contract amount including contingencies the Contractor received under the contract.

   b. The name and address of the disabled veteran business enterprise that participated in the performance of the contract and the contract number.

   c. The amount and percentage of work the Contractor committed to provide to one or more disabled veteran business enterprises under the requirements of the contract and the amount each disabled veteran business enterprise received from the prime contractor.

   d. That all payments under the contract have been made to the disabled veteran business enterprise. Upon request by the CDFW, the Contractor shall provide proof of payment for the work. A person or entity that knowingly provides false information shall be subject to a civil penalty for each violation in the minimum amount of two thousand five hundred dollars ($2,500) and the maximum amount of twenty-five thousand dollars ($25,000). An action for a civil penalty under this subdivision may be brought by any public prosecutor in the name of the people of the State of California and the penalty imposed shall be enforceable as a civil judgment.

3. **Pursuant to the M&VC Section 999.7, the CDFW will withhold ten thousand dollars ($10,000) from the final payment, or the full final retention payment if less than ten thousand dollars ($10,000), until the Contractor complies with the certification requirements of Military and Veterans Code Section 999.5.**

4. **Contractors that fail to comply with the certification requirements shall be given notice and allowed to cure the defect. If after 15 calendar days but not more than 30 calendar days from the date of the notice, the Contractor fails to comply with the certification requirements, the CDFW shall permanently deduct ten thousand dollars ($10,000) from the final payment, or the full final retention payment if less than ten thousand dollars ($10,000). The withholding applies to all procurement approaches with a DVBE subcontractor, as defined by M&VC Section 999(b)(4). Notwithstanding any other law, the CDFW shall not withhold more than the amount specified or the full final retention**

payment of any disabled veteran business enterprise contract for the purposes of ensuring compliance with the certification requirements of M&VC 999.5.

K. Qualifications

The Contractor shall provide the CDFW Engineer with proof of the required training for each person providing services as part of the submittals under this Agreement.

The Contractor's employees who are engaged in lead removal work shall be CDPH certified and shall show evidence of current (within 12 months) training. Contractor's project foreman shall be a certified CDPH Lead Supervisor. The foreman has authority to monitor and implement required changes in work practice procedures. Contractor's lead workers shall be certified CDPH Lead Workers.

L. Special Requirements

Compliance with Regulatory Requirements: All applicable Federal, State, and County regulatory agency requirements shall be complied with during the course of the work. The Contractor's attention is directed to the following list of agency requirements that generally apply to removal work; the Contractor is responsible for identifying and complying with any other agencies or requirements not listed:

1. California Code of Regulations – Title 8; Section 1529, 5144.
2. CAL/OSHA – Personal protection during all phases of work, including exposure to airborne solvents, lead paint, dust, and mists.

M. Utility Requirements

1. **Contractor shall notify 811 "Call Before You Dig" prior to mobilization.**
2. **Existing PG&E service to the Green Island Unit (State Owned Housing (SOH) and warehouse/office sites) has been disconnected at the intersection of Green Island Road and the access road. All meters have been removed.**
   a. Prior to mobilization, the contractor shall notify PG&E of the intent to start demolition of structures.
   b. Disconnected and loose conductors shall be taped and coiled at the bottom of the PG&E power poles.
3. **Existing AT&T phone line between PG&E power pole and CDFW power pole to be removed at office shall be coiled at the bottom of the PG&E power pole.**

N. Scope of Work

1. The contractor agrees to provide to the California Department of Fish and Wildlife (CDFW) demolition and clearance services, hazardous material abatement services, Water Pollution Control Program (SWWPP) services, and implementation of said Program as described herein.
   a. Contractor shall provide all labor, tools, parts, equipment, supplies, supplies, materials, permits, travel, and incidentals necessary to demolish and remove seven (7) structures and features at the Green Island Unit.
   b. Abate all hazardous materials including but not limited to friable and non-friable asbestos and lead paint, according to all environmental laws and regulations, and provide any necessary SWWPP and implementation of said Program.

c. The work shall be done in accordance with all required Federal, State, and County codes/regulations.

d. Prior to demolition activity, Contractor shall be responsible for removing any hazardous waste, including, but not limited to, all friable and non-friable asbestos, lead-containing paint, mercury-containing thermostats, and fluorescent light fixtures, according to all environmental laws, regulations, and **Hazardous Materials Survey Report (Attachment 1)**.

e. The Contractor shall remove and abandon two (2) septic tanks is in compliance with Napa County governmental regulations and requirements; Drainage and Sewer Facilities Regulations. Septic tank removal shall be subject to inspection and approval by CDFW Contract Manager and respective County. The contractor shall notify the County and CDFW Contract Manager a minimum of twenty-four (24) hours prior to septic tank pumping and destruction.

f. The contractor will provide temporary perimeter fencing around demolition area as required to meet all State and County permitting, requirements, and regulations.

g. The contractor shall be responsible for developing and providing a Statewide Construction Stormwater General Permit.

h. The contractor shall grade the site to a finished grade in accordance with the approved SWWPP, or as directed by CDFW Contract Manager.

i. Contractor shall erect a temporary security fence with lockable gate at the entrance to the Green Island Unit. See Drawing Sheet 1 for location. The fence shall extend on both sides of the road to prevent foot and bicycle traffic.

O. Detailed Description of Work

1. Contractor shall comply with Division 26 of the California Health and Safety Code and to the rules and regulations of the Bay Area Air Pollution Control District having jurisdiction.

2. **Sale of Materials:** All materials resulting from the demolition of improvements shall become the property of Contractor and Contractor shall remove said materials from the premises with its own organization. Contractor shall not dispose of the improvements or materials therefrom by sale, gift, or in any manner whatsoever to the general public; provided, however, that this provision shall not be construed as limiting or prohibiting the sale or disposal of such improvements or materials at the site to properly licensed contractors or material men, provided that the materials are removed by Contractor.

3. Removal of buildings as a unit, or in sections capable of reassembly as a structure, **is expressly prohibited**. In no case shall Contractor engage in any solicitation of business which might subject CDFW to any liability, i.e., selling salvage to the public.

4. **Protection Fences:** Prior to starting demolition operations, Contractor shall erect protection fences as required by the SWWPP.

6. **Demolition:** The contractor shall completely remove seven (7) building structures including awnings, porches, planters, flagpole, and attached miscellaneous fencing with respect to each structure and as follows;

   a. North Area: SOH perimeter foundation shall be completely demolished and removed including any adjoining concrete sidewalks associated with SOH.

   b. North Area: Garage #1 perimeter foundation with dirt floor shall be demolished and

removed.

c. North Area: Garage #2 concrete slab, perimeter stem wall/footings, and concrete driveway shall remain. Top of stem wall shall be cut flush with top of concrete slab.

d. South Area: Warehouse #1, Warehouse #2, and Office slab and foundations shall remain. Top of stem wall shall be cut flush with top of concrete slab.

e. Miscellaneous slabs adjoining Warehouse #1 shall remain.

f. Removed construction debris and materials shall not be left on site. Material shall be removed and properly disposed of.

g. The water tank, pump and materials associated with the water tank shall not be removed.

h. See Item P. Additive #1 for removal of slabs and foundations.

7. **Fences:**

a. Contractor shall remove all existing perimeter fencing, posts, and gates surrounding the North area including any concrete foundations associated with posts.

b. Remove all intermediate and miscellaneous fencing located within the North area perimeter fencing. This includes chicken coops, iron post fencing, wood fencing, and all other miscellaneous and partial fencing.

c. Remove pipe railing fence and post foundations at North area as shown on the drawing.

d. Remove sheet metal fence, posts/supports, and miscellaneous debris along the west side of the South area as shown on the drawing.

8. **Septic Tank and System Destruction:**

a. Septic Tank Destruction Permits (2) must be obtained from the Napa County office and follow all Napa County requirements.

b. At no time shall sewage be discharged to the ground surface.

c. The septic tank must be pumped by an authorized County permitted septic tank pumping company.

d. A receipt for the load must be available during the inspection of the tank destruction.

e. All piping shall be disconnected from the tank and removed or appropriately capped.

f. Tanks shall be destroyed in place; the top, sides, and bottom of the tank shall be broken in, and hydrated lime or chlorine must be spread throughout the tank and the area surrounding the tank.

g. At no time shall the excavation be left unattended unless a suitable and adequate barrier is provided to ensure safety.

h. The tank must be completely filled with earth, sand, gravel, concrete, or other approved material. The fill material shall be placed so as to prevent settling.

i. After or during placement of the hydrated lime or chlorine and prior to backfill, tank shall be inspected by the County or as required.

j. Contractor shall plug and cap sewer lines and cleanouts minimum twelve feet (12”) below ground.

9. **Debris Removal:** The contractor shall remove and properly dispose of all miscellaneous rubble, brick, plaster, lumber, wood splinters, steel pipe, logs, and other debris including uprooted trees and shrubs from within the **Boundary Areas** shown on the drawings.
10. **Dust Control:** Contractor shall provide dust control during demolition loading. No separate payment will be made for any work performed or material used to control dust resulting from Contractor's performance of the work. Payment for dust control shall be included in the bid proposal. No additional costs will be allowed.
11. **Water:** Water is not available on site. The Contractor shall provide water tanks, water trucks, etc. as required to control dust and other required operations.
12. **Plants, Shrubs, and Trees:** Contractor shall only remove plants, shrubs, and trees that are in direct conflict with the demolition of structures. Notify the CDFW Manager prior to removing. Any tree removal shall include removing the major stump/root ball and backfilling and leveling the resulting excavation.
13. **Sediment and Pollution Control Requirements**
    a. SWPPP requirements
    b. The contractor shall follow best management practices (BMPs) as approved by the State. BMPs include but are not limited to the following:
        - Erosion and sediment control BMPs.
        - Preservation of natural features, vegetation and soil.
        - Perimeter sediment control (perimeter silt fence, fiber rolls.)
        - Sediment trap or sediment basin to retain sediment on site.
        - Stabilized construction exits (walking pathway only.)
        - Material handling and waste management.
        - Control of vehicle/equipment fueling to contractor's staging area.
        - Spill prevention and control.
    c. The contractor shall employ the site-specific BMPs in the plan as needed and as conditions arise.
    d. The contractor shall conduct site inspections before, during extended storm events, and after each storm event to identify areas that may contribute to erosion and sediment problems or any other pollutant discharges. Additional control measures need to be implemented immediately.
14. **Hazardous Materials Survey Report**
    a. The hazardous results listed in Attachment 1 by the testing company are for information only. Contractor shall be responsible for determining <u>actual quantities</u> for bidding purposes.
    b. The attached **Hazardous Materials Survey Report** (**Attachment 1**) contains comprehensive reports and diagrams of the Asbestos Containing Material (ACM) and lead-based paint. The removal of asbestos will comply with the requirements of these provisions pertaining to encapsulation, removal, and disposal of asbestos.

c. Asbestos-related work shall be performed by a properly licensed Asbestos Abatement Contractor or subcontractor, certified by Contractors State License Board and registered with the Department of Industrial Relations (DIR), Cal/OSHA. Contractor or subcontractor must also be certified and registered pursuant to the Business and Professions Code Section 7058 and Section 6501.5 of the Labor Code.

d. Contractor performing any asbestos abatement work shall be responsible for maintaining, monitoring, securing, and posting the site in accordance with all laws, regulations, and permits required for asbestos abatement work.

e. Lead abatement work shall be performed by a person certified by CDPH as a lead supervisor or a lead worker under the direction of a lead supervisor pursuant to Title 17 of the California Code of Regulations, Sections 35001 et seq. If lead abatement is required, Contractor or subcontractor shall provide proof of such certification at the time the lead abatement plan is submitted to CDFW Contract Manager. Proof that the lead abatement plan has been prepared by a person who is properly certified by CDPH shall also be provided to CDFW Contract Manager at the same time.

f. Contractor performing any lead abatement work shall be responsible for maintaining, monitoring, securing, and posting the site in accordance with all laws, regulations, and permits required for lead- based paint abatement work.

g. All work shall conform to all Federal, State, and County laws governing the identification, preparation, worker requirements, equipment, safety, monitoring, signing, fencing, removing, and hauling of friable and non-friable asbestos. The contractor shall supply copies of information on all applicable licenses, permits, and notifications required by applicable laws and regulations.

h. Applicable regulations include, but are not limited to, the following:

   1) California Health and Safety Code, Division 20, Chapter 6.5 Hazardous Waste Control, Chapter 6.8 Hazardous Substance Account.

   2) California Code of Regulations, Title 8, General Industry Safety Order 5208, Asbestos.

   3) Code of Federal Regulations, Title 29, Part 26, Occupational Safety and Health Administration.

   4) Code of Federal Regulations, Title 29, Part 1910, Hazardous Waste Operations and Emergency Response.

   5) BAAQMD Regulations.

   6) Code of Federal Regulations, Title 40, Part 61, Subpart M, National Emission Standard for Asbestos.

i. Contractor performing the asbestos and/or lead-based paint abatement work shall provide CDFW Contract Manager with copies of all documents required for the asbestos or lead-based paint abatement work and a certification at the conclusion of the asbestos and/or lead-based paint removal and disposal that all work was completed in accordance with the appropriate laws, regulations, and permits.

j. Compensation for the work of encapsulating, removing, and disposing of materials containing friable and/or non-friable asbestos on the areas which are shown on the Hazardous Material Survey Report is included in the lump sum Bid Proposal.

k. If Contractor discovers any asbestos or lead-based paint containing material not noted in the report provided by CDFW, Contractor must stop work immediately. Said materials will be removed only after approval in writing by CDFW Contract Manager and Contractor will be paid with Contingency as shown in Attachment 3, Cost Sheet of the Bidding Documents.

15. **Debris**

a. Debris shall not be disposed of on State property. The contractor shall make arrangements for disposal outside the State property.

b. Materials to be disposed of shall not be burned either inside or outside of the State property.

16. **Discovery of Asbestos, Lead-Based Paint, or Other Hazardous Substances/Materials**

a. If Contractor discovers or suspects asbestos, lead-based paint, or other known hazardous substances/materials during the demolition and removal process that have not been identified by **Attachment 1**, Hazardous Materials Survey Report, Contractor shall **stop work immediately**. The contractor shall verbally notify CDFW Contract Manager of these findings immediately and confirm verbal notification in writing within twenty-four (24) hours.

b. Once notified, CDFW Contract Manager will immediately request a site investigation and lab analysis report to determine the location(s) and percentage of asbestos material, lead-based paint, or other hazardous substances/materials that are discovered or suspected to be present.

c. Continuation of work shall not commence until Contractor has been authorized to do so in writing by CDFW Contract Manager.

d. Should it become necessary to cancel the work request, Contractor shall be compensated only for work completed to CDFW Contract Manager's satisfaction. No payment shall be made for delay or lost profits anticipated for uncompleted work.

e. Failure to notify CDFW Contract Manager of the discovery of asbestos, lead-based paint, or other hazardous substances/materials may result in immediate cancellation of the Agreement and legal liability to Contractor for all actual damages resulting.

17. **Asbestos**

a. Encapsulating Asbestos: This work shall consist of sealing and taking precautions to minimize breakage or disturbance of ACM and laying new non-containing asbestos material on top of the ACM.

b. Removal and Disposal of Asbestos

1. The removal of asbestos shall be accomplished as required by law and copies of permits shall be given to CDFW Contract Manager. All waste generated must be disposed of in an approved hazardous waste site and transported by licensed hazardous waste hauler.

2. All removal and disposal shall meet all state and federal codes and requirements. The contractor shall comply with applicable portions of the California Code of Regulations. **Contractor shall pay any and all disposal site charges. Said fees are to be included in the Bid Proposal. No additional costs will be allowed.**

3. This work shall consist of removing and disposing of materials containing friable and/or non-friable asbestos prior to the rehabilitation of CDFW-owned improvements. Contractor performing any asbestos work shall obtain all necessary licenses, permits, certifications, and other documents needed for this work. Compensation for compliance with these requirements shall be included in the bid proposal. No additional costs will be allowed.
4. All layers of vinyl flooring shall be completely removed and abated.

c. Friable Asbestos

1. The plans for friable asbestos must be approved by the BAAQMD prior to submittal to CDFW Contract Manager. Plans must be submitted to CDFW Contract Manager seven (7) working days prior to the start of work. The plan shall include identification of all Environmental Protection Agency (EPA), and Occupational Safety and Health Administration (OSHA) licenses, permits, and certifications required for asbestos abatement work, removal, handling, and transport.
2. Contractor performing the asbestos work shall retain and maintain all records required for asbestos abatement work. The contractor shall provide CDFW Contract Manager with copies of all documents required for the asbestos abatement work and a certification of Contractor performing the asbestos work at the conclusion of the asbestos removal and disposal that all work was completed in accordance with the appropriate laws, regulations, and permits.
3. The contractor shall use a California Uniform Hazardous Manifest, which will be signed by CDFW Contract Manager.
4. Contractor shall use hazardous waste haulers having current registration with the California Department of Toxic Substances Control (DTSC) and shall have a US EPA Identification Number (US EPA ID Number).
5. CDFW will supply the EPA Generator Number for Contractor for the disposal of friable asbestos.
6. All vehicles used to transport hazardous waste shall have a valid Certificate of Compliance affixed to the vehicle.
7. Friable asbestos containerized for transportation to the disposal site shall be appropriately labeled.
5. Disposal of friable asbestos shall be at a legally authorized waste disposal facility. The contractor shall pay all disposal site charges. **Contractor shall pay any and all disposal site charges. Said fees are to be included in the Bid Proposal. No additional costs will be allowed.**

d. Non-Friable Asbestos

1. Non-friable asbestos containing material waste is to be considered hazardous waste. Contractor shall take precautions during removal that it remains wet, breakage is minimized, minimal visual emissions are allowed, and it is not physically altered or powdered to result in the release of free asbestos fibers.
2. An EPA Generator Number is not required for non-friable asbestos.
3. Non-friable asbestos shall be placed into appropriate containers and suitably covered.

4. Disposal of the non-friable asbestos shall be done at a legally approved disposal facility. **Contractor shall pay any and all disposal site charges. Said fees are to be included in the Bid Proposal. No additional costs will be allowed.**

18. **Lead-Based Paint**

a. Required work as stipulated in this Agreement shall comply with all rules and regulations and laws in the County and State that work is to be performed.

b. Abatement of lead-based paint shall only be done in accordance with guidelines and regulations established by National Institute for Occupational Safety and Health (NIOSH), Cal/OSHA, US EPA, National Emission Standards for Hazardous Air Pollutants (NESHAP), and Housing Urban Development (HUD) Guidelines for Evaluation and Control of lead-based paint (Hazards in Housing).

c. Any inconclusive test results from CDFW furnished Hazardous Materials Survey Report shall be handled and properly disposed of and treated as possible lead-based paint.

d. The removal of lead-based paint shall be accomplished as required by law and copies of permits shall be given to CDFW Contract Manager. All waste generated must be disposed of in an approved hazardous waste site and transported by licensed hazardous waste hauler. All removal and disposal shall meet all State and Federal codes and requirements. The contractor shall comply with applicable portions of the California Code of Regulations. **Contractor shall pay any and all disposal site charges and include them in the Bid Proposal. No additional costs will be allowed.**

e. This work shall consist of removing and disposing of materials containing lead-based paint prior to the rehabilitation of the State-owned improvements. Contractor performing any lead-based paint work shall obtain all necessary licenses, permits, certifications, and other documents needed for this work.

f. Contractor performing any lead-based paint work shall prepare a plan presenting the methods for encapsulating, removing, handling, transporting, and disposing of lead-based paint.

19. **Final Clearance Report**

A final clearance report shall be conducted after all hazardous containing material has been removed, in accordance with all rules, regulations, and laws that are pertinent in the State of California.

a. The final clearance report shall include asbestos and lead-based paint survey to confirm that all the asbestos and lead-based paint containing materials have been removed. Inspection of all areas where asbestos was encapsulated shall be made. Bulk material samples, personal samples, and air samples are to be taken in order to assess asbestos hazards at the site after removal.

b. Air samples shall be taken to determine if asbestos is present in the air. Analysis shall be performed by an American Industrial Hygiene Association accredited laboratory for asbestos analysis.

c. Additional asbestos removal work that would be performed based upon the results of the post sampling test shall be considered as part of the bid amount submitted by Contractor and no additional compensation will be allowed for that work.

20. **Contractor's Responsibilities**
    a. The contractor shall ensure that only qualified and competent employee(s) are permitted on the job site and that the work shall be safely performed by the highest industry standards. Contractor shall take all necessary precautions to prevent injury or hazard to CDFW employee(s).
    b. Contractor shall comply with all applicable Federal, State, and County laws, ordinances, rules, and regulations which in any manner affect those engaged or employed in the work to be performed.
    c. In the event Contractor's operations create a condition hazardous to the CDFW property, The contractor shall provide warning signs alerting to any dangerous conditions at Contractor's own expense and without cost to CDFW.
    d. Contractor shall provide prior to demolition all permits/plans/notifications identified in Section **D. License/Permit/Notification Requirements.**
    e. CFC Section 3303.1.1 Components of Site Safety Plans shall include the following as applicable;
        1) Name and contact information of site safety director.
        2) Documentation of the training of the site safety director and fire watch personnel.
        3) Procedures for reporting emergencies.
        4) Fire department vehicle access routes.
        5) Location of fire protection equipment, including portable fire extinguishers, standpipes, fire department connections and fire hydrants.
        6) Smoking and cooking policies, designated areas to be used where approved, and signage locations in accordance with Section 3305.8.
        7) Location and safety considerations for temporary heating equipment.
        8) Hot work permit plan.
        9) Plans for control of combustible waste material.
        10) Locations and methods for storage and use of flammable and combustible liquids and other hazardous materials.
        11) Provisions for site security.
        12) Changes that affect this plan.
        13) Other site-specific information required by the fire code official.
21. **Completion and Inspection**
    a. It is Contractor's responsibility to notify CDFW Contract Manager to have work inspected and approved.
    b. Contractor shall begin work by the date specified in the Notice to Proceed informing him that the Agreement has been approved and shall diligently prosecute the work, and the work shall be completed before the expiration date as stipulated in this Agreement.

22. **Workmanship**
    a. Workmanship shall conform to the commercially reasonable standards of the industry and shall be in conformance with the building codes of the State, County, and City in which the work is being done; copies of any required building permits shall be submitted to CDFW Contract Manager with the Contractor's invoice(s).
    b. The contractor shall conduct its operation in such a manner as to avoid injury or damage to the property of CDFW or the adjacent property. If such objects are injured or damaged because of Contractor's operation, they shall be restored at Contractor's sole expense.
    c. Any work judged unsatisfactory by CDFW Contract Manager shall be redone at Contractor's sole expense.
23. **Waste Disposal**

    Prior to the commencement of waste disposal, Contractor must adhere to the provisions highlighted in Senate Bill 1383 (Lara) of 2016 Title 14, CCR, General Provisions section 18981.2, Public Resources Code sections 42652 et. seq.
24. **Unforeseen or Unanticipated Work**

    If during the demolition services described herein, it is discovered that additional work is required in order to complete required work under this Agreement, such work may be completed as directed and pre-approved by CDFW Contract Manager.
25. **Reports (Attachments 1, 2, and 3)**
    a. Demolition Level Asbestos and Lead Survey Report (Attachment 1)
        1) Estimated quantity of hazardous materials identified in Attachment 1 is information only.
        2) It is the requirement of the Contractor to determine quantities for bidding. Additional compensation for quantity of materials exceeding quantities listed in Report will not be allowed.
    b. Limited Asbestos in Surface Soils Survey (Attachment 2)
        1) Soils surrounding the structures were tested for asbestos and found to be negative.
    c. Lead Related Construction Soils Sampling (Attachment 3)
        1) Soils surrounding the structures were tested for lead and found to be within the required limits.
        2) No action is required for removal.
26. **CDFW Responsibilities**
    a. CDFW will hire an Independent Industrial Hygienist to be on site to monitor the Contractor's hazardous activities.

P. <u>ADDITIVE #1</u>

1. Contractor shall remove concrete foundations and miscellaneous slabs as follows;
   a. North Area
      - Garage #2 concrete slab and foundation
      - Garage #2 driveway

   b. South Area
      - Warehouse #1 concrete slab and foundation
      - Warehouse #1 miscellaneous adjoining concrete slabs
      - Warehouse #2 concrete slab and foundation
      - Office concrete slab and foundation

2. Contractor shall fill in and level areas created by excavation of concrete slabs and foundations. Material shall be from an onsite location from the North Area as directed by the Facility Manager. No outside material will be brought in or allowed.

3. The contractor shall do all excavating and leveling necessary to accomplish the demolition and removal of all slabs, footings, piers, foundation walls, and curbs.

4. Any excess material resulting from excavation shall be cleaned of foreign debris and spread on site.

1. **EXCISE TAX ~** The State of California is exempt from federal excise taxes, and no payment will be made for any taxes levied on employees' wages. The State will pay for any applicable State of California or local sales or use taxes on the services rendered or equipment or parts supplied pursuant to this Agreement. California may pay any applicable sales and use tax imposed by another state.

2. **AVAILABILITY OF FUNDS ~** Work to be performed under this agreement is subject to availability of funds through the State's normal budget process.

3. **LICENSES AND PERMITS ~** The Contractor must be an individual or firm licensed to do business in California and must obtain, at Contractor's expense, all licenses and permits required by law for accomplishing any work required in connection with this Agreement.

   If Contractor is located within the State of California, a business license from the City/County in which Contractor is headquartered is necessary; however, if Contractor is a corporation, a copy of the Contractor's incorporation documents/letters from the Secretary of State's Office can be submitted. If Contractor is outside the State of California, Contractor must submit to the California Department of Fish and Wildlife (CDFW) a copy of their business license or incorporation papers for Contractor's respective State showing that Contractor's company is in good standing in that State.

   In the event any licenses and/or permits expire at any time during the term of this Agreement, Contractor agrees to provide the CDFW a copy of the renewed licenses and/or permits within thirty (30) days following the expiration date. In the event the Contractor fails to keep in effect, at all times, all required licenses and permits, the State may, in addition to any other remedies it may have, terminate this Agreement upon occurrence of such event.

4. **RIGHTS IN DATA ~** The Contractor agrees that all data, plans, drawings, specifications, reports, computer programs, operating manuals, notes and other written or graphic work produced in the performance of this Agreement, are subject to the rights of the State as set forth in this section. The State will have the right to reproduce, publish, and use all such work, or any part thereof, in any manner and for any purposes whatsoever and to authorize others to do so. If any such work is copyrightable, the Contractor may copyright the same, except that, as to any work which is copyrighted by the Contractor, the State reserves a royalty-free, nonexclusive and irrevocable license to reproduce, publish, and use such work, or any part thereof, and to authorize others to do so.

5. **SETTLEMENT OF DISPUTES ~** Unless otherwise provided in this Agreement, any dispute concerning a question of fact arising under this Agreement which cannot be resolved informally, will be decided by the following two (2) step procedure:

   A. The Contractor must provide written notice of the particulars of such disputes to the CDFW Contract Manager or appointed representative. The CDFW Contract Manager must respond, in writing, within ten (10) working days of receipt of the written notice of dispute. Should the Contractor disagree with the CDFW Contract Manager's decision, the Contractor may appeal to the second level. Pending the decision on appeal the Contractor must proceed diligently with the performance of this Agreement in accordance with the CDFW Contract Manager's decision.

   B. The second level appeal must indicate why the CDFW Contract Manager's decision is unacceptable, attaching it to the Contractor's original statement of the dispute with

supporting documents, and a copy of the CDFW Contract Manager's response. This letter of appeal must be sent to the CDFW, Deputy Director, or duly appointed representative. The second level appeal must be filed within fifteen (15) working days upon receipt of the CDFW Contract Manager's decision. Failure to submit an appeal within the period specified will constitute a waiver of all such rights to an adjustment of this Agreement. The Deputy Director, or designee, will meet with the Contractor to review the issues raised. A written decision signed by the Deputy Director or designee, will be returned to the Contractor within fifteen (15) working days of the receipt of the appeal. The decision of the Deputy Director, or designee, will be final.

6. **CONFIDENTIALITY OF DATA ~** All financial, personal, technical, and other data and information relating to the CDFW operations which are designated confidential by the CDFW, and made available to the Contractor in order to carry out this Agreement, or which becomes available to the Contractor in carrying out this Agreement will be protected by the Contractor for the protection of the Contractor's data and information are deemed by the CDFW's confidential information, such methods and procedures may be used, with written consent of the CDFW, to carry out the intent of this paragraph. The Contractor will not be required under the provisions of this paragraph, to keep confidential any data or information which is or becomes publicly available, is already rightfully in the Contractor's possession, is independently developed by the Contractor outside the scope of this Agreement or is rightfully obtained from third parties.

7. **RIGHT TO TERMINATE ~** The State reserves the right to terminate this agreement subject to thirty (30) days written notice to the Contractor. Contractor may submit a written request to terminate this agreement only if the State should substantially fail to perform its responsibilities as provided herein.

   However, the agreement can be immediately terminated for cause. The term "for cause" will mean that the Contractor fails to meet the terms, conditions, and/or responsibilities of the contract. In this instance, the contract termination will be effective as of the date indicated on the State's notification to the Contractor.

   This agreement may be suspended or cancelled without notice, at the option of the Contractor, if the Contractor or State's premises or equipment are destroyed by fire or other catastrophe, or so substantially damaged that it is impractical to continue service, or in the event the Contractor is unable to render service as a result of any action by any governmental authority.

8. **DISCLOSURE REQUIREMENTS ~** Any document or written report prepared in whole or in part pursuant to this Agreement must contain a disclosure statement indicating that the document or written report was prepared through an Agreement with the State. The disclosure statement must include the Agreement number and dollar amount of all Agreements and subcontracts relating to the preparation of such documents or written reports. The disclosure statement must be contained in a separate section of the document or written report.

   If the Contractor or subcontractor(s) are required to prepare multiple documents or written reports, the disclosure statement may also contain a statement indicating that the total Agreement amount represents compensation for multiple documents or written reports. The Contractor must include in each of its subcontracts for work under this Agreement, a provision which incorporates the requirements stated within this section.

9. **USE OF SUBCONTRACTOR(S) ~** The Contractor must adhere to the rules governing subcontracting as set forth in the Subletting and Subcontracting Fair Practices Act, commencing with Public Contract Code, Section 4100. Subcontractor substitutions must be in accordance with provisions of the Subletting and Subcontracting Fair Practices Act, beginning with Public Contract Code, Section 4100. Violations of this Act by the Contractor may subject the Contractor to penalties and disciplinary action as provided by the Subletting and Subcontracting Fair Practices Act. If the Contractor desires to accomplish part of the services using one (1) or more subcontractors, the following conditions must be met:

   A. The Contractor must submit any subcontracts to the State for approval prior to starting any of the work.

   B. The Agreement between the primary Contractor and the subcontractor must be in writing.

   C. The subcontract must include specific language which establishes the rights of the auditors of the State to examine the records of the subcontractor relative to the services and materials provided under the Agreement.

   D. The Contractor must pay the Contractor's Subcontractors for work performed no later than ten (10) days after receipt of each progress payment. If there is a good faith dispute over all or any portion of the amount due a Subcontractor on a progress payment, the Contractor may withhold no more than one hundred fifty percent (150%) of the disputed amount. This provision will apply to Sub-subcontractors also. A violation of these requirements invokes the payment and penalty provisions of Public Contract Code, Section 10262 and Section 10262.5.

   E. If a subcontractor contracts a portion of the work to a lower tier subcontractor, the subcontractor may not sublet any portion of the work without the written permission from the State. The lower tier subcontractor must have the proper license with the Contractors State License Board (CSLB) and must be registered with Department of Industrial Relations (DIR).

   F. Upon termination of any subcontract, the State must be notified immediately, in writing.

10. **POTENTIAL SUBCONTRACTOR(S) ~** Nothing contained in this Agreement or otherwise will create any contractual relation between the State and any subcontractor(s) and no subcontract will relieve the primary Contractor of its responsibilities and obligations hereunder. The Contractor agrees to be as fully responsible to the State for the acts and omissions of its subcontractor(s) and of persons directly employed or indirectly employed by any of them as it is for the acts and omissions of persons directly employed by the Contractor. The Contractor's obligation to pay its subcontractor(s) is an independent obligation from the State's obligation to make payments to the primary Contractor. As a result, the State will have no obligation to pay or to enforce the payment of any monies to any subcontractor. The State will not entertain requests to arbitrate disputes among Subcontractors or between the Contractor and Subcontractor(s) concerning responsibility for performing any part of the Work.

11. **TRAVEL AND PER DIEM ~** The Contractor agrees that all travel and per diem paid its employees under this Agreement will be at rates not to exceed those amounts paid to the no represented/excluded State employees. No travel outside the State of California will be reimbursed unless prior written authorization is obtained from the State.

12. INSURANCE ~ When the Contractor submits a signed Agreement to the State, the Contractor must furnish to the State a certificate of insurance stating that there is liability insurance presently in effect for the Contractor for all applicable insurance. Contractor agrees to provide the State a copy of the policy upon request.

A. General Provisions Applying to All Policies

(1) Coverage Term – Coverage needs to be in force for the complete term of the contract. If insurance expires during the term of the contract, a new certificate must be received by the State at least ten (10) days prior to the expiration of this insurance. Any new insurance must still comply with the original terms of the contract.

(2) Policy Cancellation / Termination & Notice of Non-Renewal –Contractor must provide to the State within two business days a copy of any notice of Cancellation/Termination or Non-renewal received by contractor for any of the required insurance policies. In the event Contractor fails to keep in effect the specified insurance coverage, the State may, in addition to any other remedies it may have, terminate this Contract upon the occurrence of such event, subject to the provisions of this Contract.

(3) Deductible – Contractor is responsible for any deductible or self-insured retention contained within their insurance program.

(4) Primary Clause – Any required insurance contained in this contract must be primary, and not excess or contributory, to any other insurance carried by the State.

(5) Insurance Carrier – All insurance companies issuing any of the policies required by these provisions must be licensed to do business in the State of California.

(6) Insurance Carrier Required Rating – All insurance companies must carry a rating acceptable to the Office of Risk and Insurance Management. "A" or better and a financial size category of "VII" or better to the latest edition of the A.M. Best Key Rating Guide. Any other rating classification requires State approval. If the Contractor is self-insured for a portion or all of its insurance, review of financial information including a letter of credit may be required.

(7) Endorsements – Endorsements requested by the State must be physically attached to all requested certificates of insurance and not substituted by referring to such coverage on the certificate of insurance. This endorsement must be supplied under form acceptable to the Office of Risk and Insurance Management. **The policy(-ies) must provide additional insurance language as follows: The State of California, its officers, agents, and employees as additional insured, but only with respect to work performed under the agreement.**

In the case of Contractor's utilization of subcontractors to complete the contracted scope of work, contractor must include all subcontractors as insured under Contractor's insurance or supply evidence of insurance to The State equal to

policies, coverages and limits required of Contractor.

(8) Inadequate Insurance – Inadequate or lack of insurance does not negate the contractor's obligations under the contract.

B. Insurance Requirements

(1) Commercial General Liability – Contractor must maintain general liability on an occurrence form with limits not less than $1,000,000 per occurrence for bodily injury and property damage liability combined with a $2,000,000 annual policy aggregate. The policy must include coverage for liabilities arising out of premises, operations, independent contractors, products, completed operations, personal & advertising injury, and liability assumed under an insured contract. This insurance must apply separately to each insured against whom claim is made or suit is brought subject to the Contractor's limit of liability.

The policy must be endorsed.

(2) Automobile Liability – Contractor must maintain motor vehicle liability with limits not less than $1,000,000 combined single limit per accident. Such insurance must cover liability arising out of a **motor vehicle including owned, hired and non-owned motor vehicles.**

The policy must be endorsed.

(3) Workers Compensation and Employers Liability – Contractor must maintain statutory worker's compensation and employer's liability coverage for all its employees who will be engaged in the performance of the Contract. Employer's liability limits of $1,000,000 are required. **When work is performed on State owned or controlled property the Workers' Compensation policy must be endorsed with a Waiver of Subrogation or Right to Recover endorsement in favor of the State of California, Department of Fish and Wildlife must be attached to certificate. Waiver of Subrogation is waved for Emergency Contracts.**

(4) Builder's Risk/Installation Floater – During the term of this contract, Contractor must maintain in force, at its own expense, Builder's Risk/Installation Floater for an amount equal to the full amount of the Contract improvements, upon the project and all materials or items which become the property of State pursuant to the Contract Documents, including, but not limited to, materials and other items at the work site or stored off-site with consent of State. A copy of any applicable Builder's Risk/Installation Floater will be provided to State, and it will be the responsibility of Contractor and each Subcontractor to satisfy itself as to the terms of such coverage, and to determine whether at its own cost, to carry any supplemental policy of insurance. If Applicable.

(5) Pollution Liability – Contractor must maintain Pollution Liability covering the contractor's liability for bodily injury, property damage and environmental damage resulting from pollution and related cleanup cost incurred, all arising out of the work or services to be performed under this contract. Coverage must be provided for both work performed on site and during the transportation as well

as proper disposal of hazardous materials. Contractor must maintain pollution liability with limits no less than $1,000,000 per incident. If Applicable.

The policy's bond terms conform to Form MCS-90 or MCS-82, respectively, as defined and set forth in Sections 387.7 to 387.15, inclusive, of Title 49 of the Code of Federal Regulations, or a written decision, order or authorization to self-insure that complies with paragraph (3) of subsection (d) of Section 387.7 of Title 49 of the Code of Federal Regulations, adopted pursuant to Section 30 of Motor Carrier Act of 1980 (49 U.S.C. Sec 10927). If Applicable.

The policy must be endorsed.

(6) Aircraft Liability – Contractor must maintain motor vehicle liability with limits not less than $1,000,000 combined single limit per accident. Such insurance must cover liability arising out of an aircraft including owned, hired and non- owned aircraft. If Applicable.

The policy must be endorsed.

(7) Watercraft Liability – Contractor must maintain motor vehicle liability with limits not less than $1,000,000 combined single limit per accident. Such insurance must cover liability arising out of a watercraft including owned, hired and non-owned watercraft. If Applicable

The policy must be endorsed.

13. CONTRACT BONDS

A. When the Contract Sum exceeds Twenty-Five Thousand Dollars ($25,000), Contractor must furnish, in duplicate, a Payment Bond, to accompany the Contract, in an amount equal to one hundred percent (100%) of the Contract Sum securing payment for laborers, mechanics, and materials suppliers used on the Work under the Contract. Payment Bonds must be prepared on a Payment Bond to Accompany Construction Contract (STD 807) as furnished by State. (PCC § 7103)

B. Performance Bond will be required if contract exceeds $10,000 and progress payments will be made. Contractor must furnish, in duplicate, a Performance Bond, to accompany the Contract, in an amount equal to one hundred percent (100%) of the Contract Sum guaranteeing faithful performance of the Work. Performance Bonds must be prepared on Performance Bond (FG-188) as furnished by the State. Performance bond may be waived by the department for emergency contracts.

C. Bonds must be issued by a corporate surety authorized to transact a general surety business in the State of California. Contractor must deliver its required bonds before the date of execution of the Contract.

14. TESTING ~ Testing, inspection, and approval of portions of the Work required by Exhibit T-Special Provisions must be made by an independent Testing Laboratory arranged and paid for by the Contractor and approved by the State. Contractor must promptly furnish two certified copies of test results and inspection records to the State Representative. Material and

equipment will not be incorporated into the project until test results indicate conformance to the Contract Documents.

15. **INSPECTION ~** The State, through any authorized representatives, has the right at all reasonable times to inspect or otherwise evaluate the work performed or being performed hereunder including subcontract supported activities and the premises in which it is being performed. If any inspection or evaluation is made by the State of the premises of the Contractor or a subcontractor, the Contractor must provide and must require their subcontractor(s) to provide all reasonable facilities and assistance for the safety and convenience of the State representatives in the performance of their duties. All inspections and evaluations will be performed in such a manner as will not unduly delay the work.

    When the Work is completed, Contractor must notify State's Representative and must request final inspection. Within five (5) Working Days, State's Representative will make final inspection. Contractor will be notified in writing of any deficiencies (Punch List). Contractor must remedy these deficiencies to complete satisfaction of State.

16. **FORCE MAJEURE ~** Neither party will be liable to the other for any delay in or failure of performance, nor will any such delay in or failure of performance constitute default, if such delay or failure is caused by 'Force Majeure'. As used in this section, 'Force Majeure' is defined as follows: Acts of war, acts of God such as earthquakes, floods, and other natural disasters such that performance is impossible.

17. **FORCED, CONVICT AND INDENTURED LABOR ~** No foreign-made equipment, materials, or supplies furnished to the State pursuant to this Agreement may be produced in whole or in part by forced labor, convict labor, or indentured labor. By submitting a bid to the State or accepting a purchase order, the Contractor agrees to comply with this provision of the Agreement. This requirement does not apply to public works (construction) Agreements.

18. **CONTRACT STAFF REQUIREMENTS ~** The Contractor represents that it has or will secure at its own expense, all staff required to perform the services described in this Agreement. Such personnel will not be employees of or have any contractual relationship with the CDFW or any other governmental entity.

19. **DEFINITIONS**

    - The Contract consists of the agreement, the general conditions of the contract, the special conditions, the drawings, and specifications, including all modifications thereof incorporated in documents before their execution.

    - Wherever in the contract the word Department is used it will be understood as referring to the CDFW.

    - Wherever in the contract the word Engineer is used it will be understood as referring to the Chief Engineer of the CDFW, acting personally or through an assistant duly authorized in writing for such act by the Engineer.

    - Written notice must be deemed to have been duly served if delivered in person to the individual or to a member of the firm or to an officer of the corporation for whom it is intended or if delivered at or sent by registered mail to the last business address known.

- The term Subcontractor, as employed herein, includes only those having a direct contract with the Contractor and it includes one who furnishes material worked to a special design according to the plans or specifications of this work but does not include one who merely furnishes material not so worked.

- The term "work" of the Contractor or Subcontractor includes labor or materials or both, equipment, transportation, or other facilities necessary to complete the contract.

20. **CORRELATION AND INTENT OF CONTRACT ~** All parts of the contract are complementary, and what is called for by none will be as binding as if called for by all. The intention of the contract is to include all labor and materials, equipment and transportation necessary for the proper execution of the work. It is not intended, however, that materials or work not covered by or properly inferable from any heading, branch, class, or trade of the specifications must be supplied unless distinctly so noted on the drawings. Materials or work described in words which so applied have a well-known technical or trade meaning will be held to refer to such recognized standards. In case of conflict, Special Provisions will govern over the Contract Drawings. The Contract Drawings will govern over Standard Specifications. Any conflict the Contractor becomes aware of during the conduct of the work must be brought to the attention of the Contract Manager. All work shown on the drawings, the dimensions of which are not figured, must be accurately followed to the scale to which the drawings are made; however, figured dimensions are in all cases to be followed, though they differ from scaled measurements. Any work for which there are no provisions in the specifications or on the drawings must be performed in accordance with the provisions of the State Specifications.

21. **DETAIL DRAWINGS AND INSTRUCTIONS ~** The Contract Manager or Engineer must furnish with reasonable promptness, additional instructions, by means of drawings or otherwise, necessary for the proper execution of the work. All such drawings and instructions must be consistent with the contract, true developments thereof, and reasonably inferable therefrom.

22. **OWNERSHIP OF DRAWINGS ~** All drawings, specifications and copies thereof furnished by the Contract Manager or Engineer are the property of the State. They are not to be used on other work, and, with the exception of the signed contract set, are to be returned on request, at the completion of the work. All models are the property of the State.

23. **ROYALTIES AND PAYMENTS ~** The Contractor must pay all royalties and license fees. Contractor must defend all suits or claims for infringement of any patent rights and will save the State harmless from loss on account thereof.

24. **TRADE NAMES ~** Any trade names or manufacturer's names shown herein are, unless otherwise specified, intended as a guide of quality and specifications to the fabricator or Contractor. Such names are not intended to limit the material or methods to any particular manufacturer or manufacturers, if equal or better quality and specifications are furnished. Unless otherwise specified herein, the Contractor will have a period of 35 days after award of this contract for submission of data substantiating a request for a substitution of an "equal" item.

25. **SURVEYS, PERMITS, AND REGULATIONS ~** The Contractor is responsible for all surveys and measurements necessary to complete the work, unless otherwise specified. Permits and licenses of a temporary nature necessary for the prosecution of the work must be secured and paid for by the Contractor. The Contractor must give all notices and comply with all laws,

ordinances, rules, and regulations bearing on the conduct of the work as drawn and specified. If the Contractor observes that the drawings and specifications are at variance therewith, Contractor must promptly notify the Contract Manager in writing, and any necessary changes will be adjusted as provided in the contract for changes in the work. If the Contractor performs any work knowing it to be contrary to such laws, ordinances, rules, and regulations, and without such notice to the Contract Manager, Contractor will bear all costs arising therefrom.

26. **PROJECT SIGNS, WARNING SIGNS, BARRICADES, AND EMERGENCY LIGHTING ~ The Contractor will be responsible for furnishing and maintaining all necessary warning signs, barricades, and emergency lighting.**

27. **MATERIALS, APPLICANCES, EMPLOYEES ~** Unless otherwise stipulated, the Contractor must provide and pay for all materials, labor, water, tools, equipment, light, power, transportation, and other facilities necessary for the execution and completion of the work. Unless otherwise specified, all materials must be new and good quality. The Contractor must, if required, furnish satisfactory evidence as to the kind and quality of materials. The Contractor must always enforce strict discipline and good order among Contractor's employees and subcontractors and must not employ unfit personnel or any personnel not skilled in the assigned work.

28. **RECORDS OF MATERIAL PURCHASED ~** If required by the CDFW Contract Manager, the Contractor must furnish duplicate invoices to the CDFW Contract Manager on all material furnished to the job.

29. **MEASUREMENT OF QUANTITY ~** The quantities of work performed will be computed by the Contract Manager based on measurement taken by the Contract Manager or an assistant; these measurements will be final and binding.

    All work completed under contract must be measured by the Contract Manager according to United States Measurements and Weights. Method of measurements is specified in the Special Conditions.

30. **OMISSIONS AND DISCREPANCIES ~** If the Contractor, in the course of the work, finds any discrepancy between the drawings and the physical conditions of the locality, or any errors or omissions in drawings or in the layout as given by points and instructions, it will be the Contractor's duty immediately to inform the Contract Manager, in writing, and the Contract Manager will promptly verify the same. Any work done after such discovery until authorized will be done at the Contractor's risk.

31. **INTERPRETATIONS AND ADDENDA ~** No oral interpretations will be made to any bidder as to the meaning of any of the contract or be effective to modify any part of the provisions of contract. Every request for any interpretation must be made in writing and addressed and forwarded to the CDFW Contract Manager specified in the Contract.

32. **CONTRACTOR'S UNDERSTANDING ~** It is understood and agreed that the Contractor has been, by careful examination, satisfied as to the nature and location of the work, and the conformation of the ground, the character, quality and quantity of the materials to be encountered, the character of equipment and facilities needed preliminary to and during the prosecution of the work, the general and local conditions, and all matters which can in any way affect the work under this contract. No oral agreement or conversation with any officer,

agent, or employee of the State, either before or after the execution of this contract, will affect or modify any of the terms or obligations herein contained.

33. **COMMENCEMENT OF WORK ~** This agreement is of no force and effect until signed by both parties and approved by the CDFW. Any work initiated prior to the approval date is done at the Contractor's own risk. Absolutely no expenses incurred prior to the effective date of this agreement will be approved for payment.

34. **CHANGES IN WORK ~** The State, without invalidating the contract, may order extra work or make changes by altering, adding to, or deducting from the work, the contract Sum being adjusted accordingly. All such work will be executed under the conditions of the original contract except that any claim for extension of time caused thereby will be adjusted at the time of ordering such change. No work will be undertaken on a change order until approval has been obtained. No extra work or change will be made unless ordered by the State, and no claim for an addition to the contract Sum will be valid unless so ordered. The value of any such extra work or change will be determined in one or more of the following ways:

    A. By estimate and acceptance in a lump sum

    B. By unit prices named in the contract or subsequently agreed upon

    C. By cost and percentage or by cost and a fixed fee

    If none of the above methods is agreed upon, the Contractor, provided an order is received as above, will proceed with the work. In such case and also under case (C) a correct account of the net cost of labor and materials, together with vouchers, must be kept and presented in such form as the CDFW Contract Manager may direct. In any case, the CDFW Contract Manager will certify to the amount, including reasonable allowance for overhead and profit, due to the Contractor. Pending final determination of value, payments on account for changes must be made on the CDFW Contract Manager 's estimate.

    When payment is made as listed in case (C) by cost and a percentage, the Contractor will be paid in accordance with Section 9-1.03 of the Standard Specifications.

    All extra work must be reported daily upon report sheets furnished to the CDFW Contract Manager by the Contractor and signed by both parties, which daily reports will thereafter be considered the true record of the force account of work done.

35. **AUTHORITY ~** Only the CDFW Contract Manager or designated representative, can authorize changes, alterations, additions, or deletions to the work. The CDFW Contract Manager shall consult with the Engineer as needed. Such authorization must be in writing, in the form of a change order or an amendment. Changes, alterations, additions, or deletions to the work requested by Department personnel other than the CDFW Contract Manager or designated representative, must be done at the Contractor's expense, unless approved in writing by the CDFW Contract Manager prior to beginning such work. The Contractor must obtain prior written approval of the CDFW Contract Manager to proceed with any work which will cause the total project cost to exceed the total original bid cost. When such work involves quantities of contract unit items, it will be the responsibility of the Contractor to make timely measurements of such unit items in advance, as are necessary, to inform the CDFW Contract Manager.

36. **SEPARATE CONTRACTS ~** The State reserves the right to let other contracts in connection with this work. The Contractor will afford other contractors' reasonable opportunity for the introduction and storage of their materials and the execution of their work and will properly connect and coordinate the other contractors' work with theirs.

    To ensure the proper execution of subsequent work, the Contractor must inspect and measure work already in place and must at once report to the CDFW Contract Manager any discrepancy between the executed work and the drawings.

37. **RIGHTS OF VARIOUS INTERESTS ~** Wherever work being done by the State's forces or by other contractors is contiguous to work covered by this contract, the respective rights of the various interests involved must be established by the CDFW Contract Manager, to secure the completion of the various portions of the work in general harmony.

38. **USE OF COMPLETED PORTIONS ~** The State will have the right to take possession of and use any completed or partially completed portions of the work, notwithstanding that the time for completing the entire work or such portions may not have expired. Taking possession and/or use will not be deemed an acceptance of any work not completed in accordance with the contract.

39. **REMOVAL OF EQUIPMENT ~** In the case of annulment of this contract before completion from any cause whatsoever, the Contractor, if notified by the State, will promptly remove any part or all Contractor's equipment and supplies from the property of the State, failing which, the State will have the right to remove such equipment and supplies at the expense of the Contractor.

40. **AMERICAN WITH DIASABLITIES ACT ~** By signing this contract, the Contractor assures the State that it complies with the Americans with Disabilities Act (ADA) of 1990 (42 USC § 12101 et seq.), which prohibits discrimination based on disability, as well as with all applicable regulations and guidelines issued pursuant to the ADA.

41. **STOP WORK ~** The Contract Manager or designated representative has authority to stop the work whenever such stoppage may be necessary to insure the proper execution of the contract. The Contract Manager or designated representative will also have the authority to reject all work and materials which do not conform to the contract, to direct the applications of forces to any portion of the work, as is required, and to order the force increased or diminished and to decide questions which arise in the execution of the work.

    If at any time before the commencement, or during the progress of the work, tools, plant, or equipment appear to the Contract Manager or designated representative to be insufficient, inefficient, or inappropriate to secure the quality of work required or the proper rate of progress, the Contract Manager or designated representative may order the Contractor to increase their efficiency, to improve their character, to augment their number, or to substitute new tools, plant or equipment as the case may be, and the Contractor must conform to such order; but the failure of the Contract Manager or designated representative to demand such increase of efficiency, number, or improvement will not relieve the Contractor of his or her obligation to secure the quality of work and the rate of progress necessary to complete the work within the time required by this contract to the satisfaction of the State.

42. **CDFW CONTRACT MANAGER'S DECISION ~** The CDFW Contract Manager must, within a reasonable time after their presentation to him or her, make decisions in writing on all claims of the State or the Contractor and on all other matters relating to the execution and progress of the work or the interpretation of the Contract Documents. All such decisions of the CDFW Contract Manager will be final.

43. **RESPONSIBILITY FOR INJURY AND DAMAGE ~** Contractor will be responsible for damage to or loss of property regardless of cause, or for injury or loss of life to persons employed on this Project and to the general public, which arise from operations under this Contract.

    From the formal Start Work Date until formal acceptance of the Work, Contractor is responsible to save from injury and damage by whatever cause all of the Work under this Contract, except as provided in Section 7105 of the Public Contract Code. Contractor must rebuild, restore, and/or repair any such injury or damage, at Contractor's sole expense, before formal acceptance.

    State is hereby relieved at all times from an indebtedness or claim other than the Contract Sum.

44. **SANITARY FACILITIES ~** Contractor must provide potable drinking water, and sanitary toilet facilities for Contractor's worker unless the use of existing facilities is authorized by State's Representative. Contractor must locate temporary facilities as directed by State's Representative and maintain such facilities in good repair and in a sanitary condition. Contractor must remove such facilities completely at the conclusion of the Work.

45. **PRESERVATION OF PROPERTY ~** Due care must be exercised to avoid injury to existing improvements or facilities, utility facilities, adjacent property, and roadside trees and shrubbery that are not removed under this contract.

    Trees and shrubbery that are not removed, the pole lines, fences, signs, survey markers and monuments, buildings and structures, conduits, pipe lines, under or above ground, culverts, sewer and water lines, and any other improvements or facilities within or adjacent to the work must be protected from injury or damage, and if ordered by the CDFW Contract Manager, the Contractor will provide and install suitable safeguards, approved by the CDFW Contract Manager, to protect such objects from injury or damage. If such objects are injured or damaged by reason of the Contractor's operations, they must be replaced or restored, at the Contractor's expense, to a condition as good as when the Contractor entered upon the work, or as good as required by the specifications accompanying the contract.

    The Contractor will examine all bridges, culverts, and other structures, on or near the work, over which materials and equipment will be moved, and before using them will properly strengthen such structures, where necessary. The Contractor will be held responsible for all injury or damage to such structures caused by reason of his or her operations.

    Full compensation for furnishing all labor, materials, tools, and equipment and doing all work involved and protecting property as above specified must be considered as included in the prices paid for the contract work and no additional compensation will be allowed.

46. **PROGRESS OF THE WORK AND TIME OF COMPLETION ~** Unless otherwise provided for, the Contractor will begin work within ten (10) days after the date of the Notice to Proceed and will diligently prosecute the same to completion before the expiration of the number of days

for this contract as set forth in the Special Provisions.

A working day is defined as any day, except as follows:

A. Saturdays, Sundays, and Legal Holidays.

B. Days on which the Contractor is prevented by inclement weather or conditions resulting immediately therefrom, as determined by the CDFW Contract Manager.

It is further agreed that in case the work called for under the contract is not finished and completed in all parts and requirements within the number of days specified, the State will have the right to increase the number of days or not, as may seem best to the interest of the State.

If the work is not completed within the time required, damage will be sustained by the State. It is and will be impracticable and extremely difficult to ascertain and determine actual damage which the State will sustain by reason of such delay; and it is therefore agreed that the Contractor will pay to the State the sum of money stipulated per day in Exhibit G, Item 53: Liquidated Damages for each and every day's delay in finishing the work beyond the time prescribed. If the Contractor fails to pay such liquidated damage, the Department may deduct the amount thereof from any money due or that may become due the Contractor under the contract.

47. DELAYS AND EXTENSION OF TIME ~ If the Contractor be delayed at any time in the progress of the work by an act or neglect of the State or its employees, or by any other Contractor employed by the State, or by changes ordered in the work, or by strikes, lockouts, fire, unusual delay in transportation, unavoidable casualties or any cause beyond the Contractor's control, or by any cause which the CDFW Contract Manager will deem to justify the delay, then the time of completion will be extended for such reasonable time as the CDFW Contract Manager may decide.

48. BASIS OF PAYMENT ~ Payment will be made by the State only on a certificate issued by the CDFW Contract Manager. Certificates will be issued as outlined in Exhibit B; Invoicing and Payment.

49. CLAIMS FOR EXTRA COST ~ If the Contractor claims that any instructions by drawings, or otherwise, involve extra cost under this contract, Contractor must give the CDFW Contract Manager written notice thereof within a reasonable time after the receipt of such instructions, and in any event before proceeding to execute the work, and the procedure must then be as provided for changes in the work. No such claims will be valid unless so made.

50. CORRECTIONS OF WORK BEFORE FINAL PAYMENT ~ The Contractor must promptly remove from the premises all materials condemned by the CDFW Contract Manager as failing to conform to the contract, whether incorporated in the work or not, and the Contractor must promptly replace and re-execute the work in accordance with the contract and without expense to the State and will bear the expense of making good all work of other contractors destroyed or damaged by such removal or replacement.

If the Contractor does not remove such condemned work and materials within a reasonable time, fixed by written notice, the State may remove them and may store the material at the expense of the Contractor. If the Contractor does not pay for the expense of the removal

within ten (10) days' written notice, the State may sell such materials at auction or at private sale and will account for the net proceeds thereof, after deducting all the costs and expenses that should have been borne by the Contractor.

51. DEDUCTIONS OF UNCORRECTED WORK ~ If the CDFW Contract Manager deems it inexpedient to correct work damaged or done not in accordance with the contract, and equitable deduction from the contract price will be made therefor.

52. PAYMENT WITHHELD ~ Notwithstanding the issuance of a certificate as defined in Article 49, the State may withhold payment to such an extent as may be necessary to protect it from loss on account of:

A. Defective work not remedied

B. Claims filed or reasonable evidence indicating filing of claims

C. Failure of the Contractor to make payment properly to the subcontractors or for material or labor

D. A reasonable doubt that the contract can be completed for the balance then unpaid

E. Damage to another contractor

When the above grounds are removed, payment will be made for amounts withheld because of them.

53. LIQUIDATED DAMAGES ~ Failure of Contractor to complete the Work within the Contract Time will result in damages being sustained by State. It is and will be extremely difficult and impracticable to determine the actual damage which State will sustain by reason of such delay. Therefore, Contractor must pay to State, as liquidated damages, the sum of **TWO HUNDRED FIFTY DOLLARS ($250.00)** for each Calendar Day's delay in finishing the Work under this Contract beyond the stipulated number of days, or any adjustments thereof. State may deduct liquidated damages from funds due or that become due Contractor. Execution of the Contract will constitute acknowledgement by Contractor that Contractor has ascertained and agrees that State will suffer damages in the amount fixed herein.

Contractor will not be assessed liquidated damages when delay is caused by the failure of State or the owner of any utility to provide for removal or relocation of existing utility, facility, or to perform work as indicated in the Contract Documents.

54. GUARANTEE ~ The Contractor hereby unconditionally guarantees that the work will be done in accordance with the requirements of this contract, and further guarantees the work of the contract to be and remain free of defects in workmanship and materials for a period of one year from the date of acceptance of the contract, unless the contract specifically calls for a longer guarantee period. The Contractor hereby agrees to repair or replace all work, together with any other adjacent work which may have been damaged or displaced in so doing, that may prove to be not in accordance with the requirements of the contract or that may be defective in its workmanship or material within the guarantee period specified, without any expense whatsoever to the State, ordinary wear and tear and unusual abuse or neglect excepted. Corrective Work must be warranted to be free from defects for a period equal to the longer of six (6) months after the completion of the corrective Work or one (1) year after

the Date of Final Completion or such longer period as may be prescribed by law, or in equity, or expiration of the term of any applicable special warranty required by the Contract Documents whichever is longer.

The Contractor further agrees, that within ten (10) calendar days after being notified in writing by the State of any work not in accordance with requirements of the contract or any defects in the work, Contractor will commence and prosecute with due diligence all work necessary to fulfill terms of the guarantee, and to complete the work within a reasonable period of time, and in the event Contractor fails to so comply, Contractor does hereby authorize the State to proceed to have such work done at the Contractor's expense and Contractor will pay the cost thereof upon demand. The State will be entitled to all costs, including reasonable attorney fees, necessarily incurred upon Contractor's refusal to pay above cost.

Manufacturer's warranties for products or materials, which have guarantee periods exceeding the one-year Contractor's guarantee period, are to be in favor of the State and are to be delivered to the State by the Contractor.

55. SUPERINTENDENT- SUPERVISION ~ The Contractor will keep on the work during its progress, a competent superintendent, and any necessary assistants, all satisfactory to the CDFW Contract Manager. The superintendent must not be changed except with the consent of the CDFW Contract Manager unless the superintendent proves to be unsatisfactory to the Contractor and ceases to be in his or her employ. The superintendent must represent the Contractor in his or her absence and all directions given to him or her will be as binding as if given to the Contractor. Important directions must be confirmed in writing to the Contractor. Other directions must be confirmed on written request in each case. The Contractor must give efficient supervision to the work, using his or her best skill and attention.

56. APPRENTICES ~ Properly registered apprentices may be employed in the prosecution of the work. Every such apprentice will be paid the standard wage paid to apprentices under the regulations of the craft or trade at which Contractor is employed and must be employed only at the work of the craft or trade to which Contractor is registered. The Contractor and each subcontractor must comply with the requirements of Labor Code Section 1777.5 and any related regulations regarding the employment of registered apprentices.

Special attention is directed to Sections 1777.5, 1777.6 and 1777.7 of the California Labor Code and Title 8, California Administrative Code Section200 et seq. Each contractor and subcontractor must, prior to commencement of Public Works Contract, contact the Division of Apprenticeship Standards, 455 Golden Gate Avenue, San Francisco, California, 94102, or one of its branch offices to ensure compliance and complete understanding of the law regarding apprentices and specifically the required ration thereunder. Responsibility for compliance with this section lies with the Contractor.

57. WORKING HOURS ~ It is agreed that the maximum hours a worker is to be employed is limited to eight (8) hours a day and forty (40) hours a week and the Contractor will forfeit, as a penalty to the State, twenty-five dollars for each worker employed in the execution of the contract for each calendar day during which a worker is required or permitted to labor more than eight (8) hours in any calendar day or more than forty (40) hours in any calendar week in violation of Labor Code Sections 1810 to 1815, inclusive, except that work performed by employees of Contractor in excess of eight (8) hours a day, and forty (40) hours during any

one week, will be permitted upon compensation for all hours worked in excess of eight (80 hours a day at not less than one-and-one half (1.5) times the basic rate of pay, as provided in said Section 1815.

58. **ACCIDENTS AND ACCIDENT PREVENTION ~** The Contractor must provide, at the site, such equipment, and medical facilities as are necessary to supply first aid service to anyone who may be injured in connection with the work.

The Contractor will be responsible for accident prevention and safety in the performance of all of the work and will be governed by the requirements of this article in all operations at the site of the work.

The Contractor must comply with all applicable safety regulations and orders of the State of California, Department of Industrial Relations, Division of Occupational Safety and Health and all applicable provisions of the California Health and Safety Code and will take or cause to be taken such additional measures as may be necessary for the prevention of accidents. The Contractor must impose the foregoing requirements on all subcontractors and enforce compliance therewith.

59. **PREVAILING WAGE ~** The Contractor must comply with Labor Code, Section 1774 and 1775. Pursuant to Section 1774, the Contractor, and any subcontractors, regardless of tier, will pay not less than the specified prevailing wage rates to all workers employed in the execution of the Contract. In accordance with Section 1775, the Contractor and any subcontractor under the Contractor will forfeit to the State not more than Fifty Dollars ($50) for each calendar day, or portion thereof, for each worker paid less than the prevailing wage rates for the work or craft, in which the worker is employed for any work executed under the Contract by the Contractor or by any subcontractor in violation of the provisions of the Labor Code; and, in particular, Labor Code, Section 1770 to 1780, inclusive. In addition to such forfeiture, the difference between such stipulated prevailing wage rates and the amount paid to each worker for each day, or portion thereof, will be paid to each underpaid worker by the Contractor or subcontractor. This provision will not apply to properly registered apprentices.

Pursuant to Labor Code, Section 1770, the Director of the Department of Industrial Relations has ascertained the general prevailing rate per diem wages and a general prevailing rate for legal holiday and overtime work for each craft required for execution of the Contract. The Contractor must obtain copies of the prevailing rate of per diem wages from the Department of Industrial Relations, Division of Labor Statistics & Research, PO Box 420603, San Francisco, CA 94142-0603, (415) 703-4780; or wage rates may be accessed on the internet at http://www.dir.ca.gov/DLSR/statistics_research.html. The Contractor is responsible to read, understand and comply with all the guidelines, including the fine print in the prevailing wage determinations; and must post a copy of the prevailing wage rates, specific to the Project, at the Project site.

Wage rates set forth are the minimum that may be paid by the Contractor. Nothing herein will be construed as preventing the Contractor from paying more than the minimum rates set. No extra compensation will be allowed by the State due to the inability of the Contractor to hire labor at minimum rates, nor for necessity for payment by the Contractor of subsistence, travel time, overtime, or other added compensations, all of which possibilities are elements to be

considered and ascertained to the Contractor's own satisfaction in preparing the Bid Form.

If it becomes necessary to employ crafts other than those listed in the General Prevailing Wage Rate booklet, the Contractor must contact the Division of Labor Statistics and Research as noted above. The rates thus determined will be applicable as minimum for the contract and incorporated in the bid. When the wage determination shows an expiration date (noted by a double asterisk **), to expire during the term of the contract, the Contractor must call or write the DIR to obtain the new rates and incorporate them in the bid to be applicable for the term of the contract.

The Contractor and each subcontractor, regardless of tier, must keep an accurate payroll record showing the names, addresses, social security numbers, work classifications, straight time and overtime hours worked each day and week, and the actual per diem wages paid to each journeyman, apprentice, worker, or other employee employed by the Contractor and/or subcontractor in connection with the Work. Payroll records must be certified and must be on forms provided by the Division of Labor Standards Enforcement or must contain the same information as those forms. The Contractor's and subcontractor's certified payroll records for each employee must be submitted with each payment request, covering the period of the payment request.

Contractor and subcontractor(s) must furnish electronic certified payroll records directly to the Labor Commissioner (aka Division of Labor Standards Enforcement).

60. LABOR COMPLIANCE MONITORING AND ENFORCEMENT ~ This project is subject to monitoring and enforcement by the Department of Industrial Relations (DIR), Compliance Monitoring Unit. All contractors and subcontractor(s), regardless of tier, will be required to comply with the Monitoring and Enforcement Program, including, but not limited to, contractor registration, submittal of electronic certified payroll reports directly to the DIR for contracts greater than Twenty-Five Thousand Dollars ($25,000) and cooperation with on-site monitoring by DIR personnel.

61. EMPLOYMENT OF UNDOCUMENTED ALIENS ~ "No state agency or department, as defined in Public Contract Code § 10357, that is subject to this code, must award a public works contract to a bidder or contractor, nor will a bidder or contractor be eligible to bid for or receive a public works contract, who has, in the preceding five (5) years, been convicted of violating a state or federal law regarding the employment of undocumented aliens. See Public Contract Code § 6101."

62. AIR OR WATER POLLUTION VIOLATIONS ~ Unless the contract is less than Twenty-Five Thousand Dollars ($25,000) or with a non-competitively bid contractor, Government Code Section § 4477 prohibits the State from contracting with a person, including a corporation or other business association, who has been determined to be in violation of any state or federal air or water pollution control law. Prior to an award, the State will ascertain if the intended awardee is a person included in notices from the Boards. In the event of any doubt of the intended awardee's identity or status as a person who is in violation of any state or federal air or water pollution law, the State will notify the appropriate Board of the proposed award and afford the board the opportunity to advise the Department that the intended awardee is such person. No award will be made to a person who is identified either by the published notices or by advice, as a person in violation of state or federal air or water pollution control laws.

63. **NATIONAL LABOR RELATIONS CERTIFICATION ~** By signing the contract, the Contractor swears under penalty of perjury that no more than one final unappealable finding of contempt of court by a federal court has been issued against the Contractor within the immediately preceding two (2) year period because of the contractor's failure to comply with an order of a federal court which orders the contractor to comply with an order of the National Labor Relations Board.

64. **SURFACE MINING AND RECLAMATION ACT ~** Imported borrow or aggregate material must come from a surface mine permitted under the Surface Mining and Reclamation Act of 1975 (SMARA), Public Resources Code § 2710, et seq., or from an exempt site.

    The Department of Conservation, Office of Mine Reclamation maintains a list of permitted mine sites. For list of permitted sites, go to: https://www.conservation.ca.gov/sitemap.

    If Contractor imports, borrows, or aggregates material from a surface not on this list, Contractor will submit proof that the mine is exempt from SMARA.

65. **PRIORITY HIRING CONSIDERATIONS ~ (Agreements over Two Hundred Thousand Dollars ($200,000))** The Contractor agrees to give priority consideration in filling vacancies in positions funded by the agreement to qualified recipients of aid under Welfare and Institutions Code Section 11200. (PCC 10353).

66. **AUDIT LANGUAGE ~ (For contracts in excess of Ten Thousand Dollars ($10,000) and/or when DVBE participation is required)** The contractor agrees that the (awarding agency/California Resources Agency), or the Bureau of State Audits or its designated representative, will have an absolute right of access to all of the contractor's records, files, documents, accounts, and financial affairs as deemed necessary for the purpose of conducting an audit to determine compliance with the terms and conditions of this contract. The Contractor must provide the auditor(s) with any relevant information requested without unnecessary delay and, on reasonable notice, permit access to its premises during normal business hours for the purpose of interviewing staff and inspecting and copying such books, records, accounts, and any other material as warranted to conduct the audit. The contractor further agrees to maintain such records for a period of three (3) years after final payment is made on this contract or three (3) years after resolution of all issues that may arise as a result of any litigation, claim, negotiation, or audit related to the contract, whichever is later. The State agrees to treat as confidential any proprietary information obtained as a part of any such audit.

67. **DVBE PARTICIPATION AND REPORTING REQUIREMENTS (Bids Exceeding Ten Thousand Dollars ($10,000)) ~ Pursuant to Public Contract Code (PCC) Section10115 et.seq., the Contractor shall use, employ and utilize Disabled Veteran Business Enterprise (DVBE) subcontractors, sub- subcontractors or material suppliers who were listed in their bid documents for DVBE Program participation, to the full extent of the amount of money and/or percentage of commitment manifested in the bid documents. If the Contractor wishes to substitute any listed DVBE subcontractors, sub-subcontractors or material suppliers for just and legal cause, the Contractor shall follow the dictates of PCC Sections 4107 and 10115.12b, as well as Military and Veterans Code (M&VC) Section 999.5(e) and California Code of Regulations, Title 2, Section 1896.64. The DVBE may only be replaced by another DVBE and shall obtain the written authorization of the State prior to any substitutions. The Contractor shall not unilaterally substitute a listed DVBE subcontractor, sub-subcontractor or**

material supplier.

Final retention will not be released until the Prime Contactor's DVBE Subcontracting Report (Form 810P) has been completed and returned to the CDFW Contract Manager.

At the end of the contract, the Contractor will be required to complete the Prime Contractor's DVBE Subcontracting Report (Form 810P) to certify that he/she has met all of their DVBE Obligations as identified in their Bid.

A. Use of Subcontractor(s)

The Contractor shall be responsible for all work performed. All persons engaged in the work will be considered employees of the Contractor. When any subcontractor fails to execute a portion of the work in a manner satisfactory to the State, the Contractor shall immediately remove such subcontractor upon written request of the State and the subcontractor shall not be employed for any portion of the contract. The State will not entertain requests to arbitrate disputes among subcontracts concerning responsibility for performing any part of the work.

B. Prime Contractor DVBE Subcontracting Form (Form 810P)

If the Contractor enters into a subcontract with a Disabled Veteran Business Enterprise (DVBE), the CDFW and the Contractor are required to follow Military and Veterans Code Section 999.5, 999.55 and 999.7. Upon request by CDFW, the Contractor shall provide proof of payment for the DVBE work.

Pursuant to the Military and Veterans Code (M&VC) Section 999.5, if the Contractor has entered into a subcontract with a DVBE, then the Contractor must certify to CDFW through the Contractor DVBE Subcontracting Form (Form PD 810P), before releasing final retention payment, all of the following:

(1) The total bid amount and the total final contract amount including contingencies the Contractor received under the contract.

(2) The name and address of the disabled veteran business enterprise that participated in the performance of the contract and the contract number.

(3) The amount and percentage of work the Contractor committed to provide to one or more disabled veteran business enterprises under the requirements of the contract and the amount each disabled veteran business enterprise received from the prime contractor.

(4) That all payments under the contract have been made to the disabled veteran business enterprise. Upon request by the CDFW, the Contractor shall provide proof of payment for the work. A person or entity that knowingly provides false information shall be subject to a civil penalty for each violation in the minimum amount of Two Thousand Five Hundred Dollars ($2,500) and the maximum amount of Twenty-Five Thousand Dollars ($25,000). An action for a civil penalty under this subdivision may be brought by any public prosecutor in the name of the people of the State of California and the penalty imposed shall be

enforceable as a civil judgment.

Pursuant to the M&VC Section 999.7, the CDFW will withhold Ten Thousand Dollars ($10,000) from the final payment, or the full final retention payment if less than Ten Thousand Dollars ($10,000), until the Contractor complies with the certification requirements of Military and Veterans Code Section 999.5. Contractors that fail to comply with the certification requirements shall be given notice and allowed to cure the defect. If after 15 calendar days but not more than thirty (30) calendar days from the date of the notice, the Contractor fails to comply with the certification requirements, the CDFW shall permanently deduct Ten Thousand Dollars ($10,000) from the final payment, or the full final retention payment if less than Ten Thousand Dollars ($10,000). The withholding applies to all procurement approaches with a DVBE subcontractor, as defined by M&VC Section 999(b)(4). Notwithstanding any other law, the CDFW shall not withhold more than the amount specified or the full final retention payment of any disabled veteran business enterprise contract for the purposes of ensuring compliance with the certification requirements of M&VC 999.5.

68. **EXECUTIVE ORDER N-6-22 – RUSSIA SANCTIONS ~** On March 4, 2022, Governor Gavin Newsom issued Executive Order N-6-22 (the EO) regarding Economic Sanctions against Russia and Russian entities and individuals. “Economic Sanctions” refers to sanctions imposed by the U.S. government in response to Russia’s actions in Ukraine, as well as any sanctions imposed under state law. The EO directs state agencies to terminate contracts with, and to refrain from entering any new contracts with, individuals or entities that are determined to be a target of Economic Sanctions. Accordingly, should the State determine Contractor is a target of Economic Sanctions or is conducting prohibited transactions with sanctioned individuals or entities, that shall be grounds for termination of this agreement. The State shall provide Contractor advance written notice of such termination, allowing Contractor at least thirty (30) calendar days to provide a written response. Termination shall be at the sole discretion of the State.

69. **GENAI TECHNOLOGY USE & REPORTING ~** During the term of the contract, Contractor must notify the State in writing if their services or any work under this contract includes, or makes available, any previously unreported GenAI technology, including GenAI from third parties or subcontractors. Contractor shall immediately complete the GenAI Reporting and Factsheet (STD 1000) to notify the State of any new or previously unreported GenAI technology. At the direction of the State, Contractor shall discontinue the use of any new or previously undisclosed GenAI technology that materially impacts functionality, risk or contract performance, until use of such GenAI technology has been approved by the State.

    Failure to disclose GenAI use to the State and submit the GenAI Reporting and Factsheet (STD 1000) may be considered a breach of the contract by the State at its sole discretion and the State may consider such failure to disclose GenAI and/or failure to submit the GenAI Reporting and Factsheet (STD 1000) as grounds for the immediate termination of the contract. The State is entitled to seek any and all relief it may be entitled to as a result of such non-disclosure.

    The State reserves the right to amend the contract, without additional cost, to incorporate GenAI Special Provisions into the contract at its sole discretion and/or terminate any contract that presents an unacceptable level of risk to the State.